

12 YEARS A SLAVE

Written by

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Based on the book by Solomon Northup

FADE IN:

1 EXT. ANIMAL PEN - DAY**1**

We are outside of a smallish animal pen. It sits in back of some wooden structures. The build and design is that of early 19th century American. It would pass for urban and commercial as opposed to agrarian. Within the pen we see SEVERAL SHEEP grazing.

Into the pen walks a BUTCHER. He is a white man in his mid-forties. Without any particular regard he takes up one of the sheep, and wrestles it into a shack-like structure.

2 INT. ABATTOIR - LATER**2**

The shack is a smallish abattoir. We see the Butcher sitting on a bench next to the sheep. With sheers in hand, the Butcher clears the wool from the sheep.

Once the sheep is clean, in a very matter of fact manner, the Butcher binds the sheep's rear legs, slits its throat, then hangs it upside down allowing for the animal to bleed out. The butcher then pulls the intestine from the animal immediately after slaughter while the gut is still hot. These bundles are put into large containers and await collection by the DRESSER.

3 INT. DRESSER'S - DAY**3**

We see now the DRESSER taking the casings from a pot of cold water. He then removes all membranes except for the muscle fibers. The casing is now ready for sorting; the casing is checked for length, color and general condition.

Selected casings are grouped together in HANKS.

4 INT. STRING MAKER'S - DAY**4**

We see now a STRING MAKER working with the hanks, using a BLADE to split them into RIBBONS. The next step is to whiten the gut with sulphur fumes before they are combed through straightening the ribbons.

Lastly, the String Maker takes some strings and WRAPS THEM IN A VERY NEAT LITTLE PACKAGE.

5 EXT. STREET - AFTERNOON**5**

The String Maker walks the package along the streets of Saratoga, New York. It is best known as the location that British General John Burgoyne surrendered to American General Horatio Gates at the end of the Battles of Saratoga on October 17, 1777, often cited as the turning point for the United States during the American Revolutionary War.

The town line is formed by the Hudson River and is the border of Washington County. Fish Creek, a tributary of the Hudson River, is the outflow of Saratoga Lake. It is a fairly modern township, but in the middle 1800s it is far from pristine.

THERE IS MUD AND MANURE EVERYWHERE, AND IT IS NEARLY IMPOSSIBLE TO KEEP ANYTHING CLEAN. This state, however, is the norm for the era and goes uncommented upon.

The String Maker arrives to a TOWNHOUSE. Using a KNOCKER that hangs at the door he raps, then calls to the occupant:

STRING MAKER
Mr. Northup? Are you there Mr.
Northup?

6 INT. TOWNHOUSE - STUDY - LATER

6

We are close on a PAIR OF HANDS. BLACK HANDS. They unwrap the package and display the strings.

WE CUT TO the hands stringing a violin. It's not a high end piece, but it is quite nice.

WE CUT TO a wide shot of the study. Sitting in a chair with violin in hand is SOLOMON NORTHUP; a man in his late twenties. Everything about Solomon, his mein and manner, is distinguished. But he, too, seems a hardy individual.

Someone who has known manual labor in his time.

Solomon begins to lightly play his violin, as if testing the strings, their tuning. Satisfied, Solomon begins to play vigorously. As he does, we make a

HARD CUT TO:

7 INT. HOUSE - LIVING ROOM - EVENING

7

We come in on a lively affair. A dinner party is being thrown with the confines of a fairly stately house. In attendance are EIGHT COUPLES. All are WHITE and all are FAIRLY YOUNG, in their early twenties. The men and women are dressed in very fine attire. We should get the sense that for the most part they are people of means.

The furniture has been set aside in the living room. At the moment the couples are engaged in the dancing of a REEL. Most likely they would be dancing "the reel of three," in which, as the name implies, three dancers weave in and out of one another, completing a figure 8 pattern on the floor, usually in six or eight bars of music.

The music they are dancing too is being played by Solomon, having cut directly from the tune he was previously playing. He plays with a light determination, and in no way seems possessed with empty servitude.

Solomon concludes the reel, and the dancers break into enthusiastic applause, which is followed by thanks and congratulations by the group. It should be clear that despite their respective races there is much admiration and appreciation for Solomon's abilities.

8 INT. NORTHUP HOUSE - BEDROOM - MORNING

8

It is a Saturday morning. Clad in her "finest attire" is ANNE; Solomon's wife. A few years younger than Solomon.

She is lighter in color than Solomon as well. We see also the Northup children: ELIZABETH, who is ten, MARGARET, eight and ALONZO who is five. They are handsome, and well groomed kids. Anne straightening up the children. She finishes, she rises up and stands behind them, almost as if preparing to pose for a portrait.

They all wait a moment, then Solomon enters the foyer.

He stands, and looks admiringly at his family.

ADMIRINGLY stressed. It isn't that he doesn't have love for them, he does as well. But in the moment, he truly admires his greatest accomplishment: a family that is healthy and well and provided for. He goes to his children, and hands each a coin.

He moves, then, to Anne. Gives her a kiss on the cheek.

The children giggle at the sight.

9 EXT. STREET - DAY

9

Solomon and his family are now out walking along the streets and groves of Saratoga.

The streets are well populated this morning with many people out strolling. Most are WHITE, but there are BLACKS as well. They are FREED BLACKS who mingle fairly easily though not always completely with the whites.

We see, too, a few BLACK SLAVES who travel with their WHITE MASTERS. These pairings are largely from the south and despite the fact the blacks are slaves, they are not physically downtrodden, not field hands. They are well dressed and "leading apparently an easy life" - comparatively speaking, as they trail their masters.

Among the slaves, we see one in particular; JASPER. As he trails his MASTER he can't help but note Solomon and his family as they make their way INTO A STORE. His intrigue of this most handsome and harmonious group should be obvious.

With his Master occupied, Jasper moves slyly toward Parker's store. Clearly his intent is to have dealings with the Northup's.

10 INT. STORE - LATER

10

We are inside the store of MR. CEPHAS PARKER, a supplier of general goods. Solomon greets him with:

SOLOMON

Mr. Parker.

PARKER

Mr. Northup. Mrs. Northup.

Though little is stated, there is clearly familiarity among them.

With money in hand the Northup children move quickly about the store looking for items to purchase.

At the checkout counter sits a portrait of WILLIAM HENRY HARRISON, the edges draped in black crepe. Before the book sits a LEDGER. Mr. Parker asks of Solomon:

PARKER

If you would, Mr. Northup, sign our condolence book. My hope is to find a way to forward it to the Widow Harrison. Sad days for the nation.

SOLOMON

But brighter times ahead.

As Anne looks over some silks and fabrics, Solomon eyes a new violin. He asks of Parker:

SOLOMON

May I?

PARKER

It would be my pleasure. Could I trouble you for a waltz, sir?

Solomon does a quick tuning of the instrument, then into a waltz; lively and well played. The Elizabeth and Margaret clasp hands and dance. There is laughter and smiles.

As Solomon plays, Jasper enters the store. He stands for a moment, again in seeming admiration of Solomon. While far from pathetic, Jasper is the definition of a subservient man.

As Solomon concludes to the applause of Parker and the children:

JASPER

Suh -- A word, suh? I could not help none but take note of yahself and yah family as yah made yah way. My congratulations to yah. Yah Missus and chil'ren be very handsome 'n must be'a great regard. My name, suh, is Jasper. I am travelin' to Saratoga with my massa. Massa Fitzgerald. And I will insist to yah, suh, that I am well provided fo'. Yah can see that jus by my adornments. And I never want for no meal or 'fo warmth at night. Massa Fitzgerald is a fine man. Very fine.

Jasper looks to Parker, then steps closer to Solomon and speaks a bit conspiratorially. The following comes from him as though it is a thought he has wrestled with for some time:

JASPER

But it is my desire I should not spend my life in his servitude. It is my quiet desire that I should have a missus of my choosin', raise up young'n and provide 'fo 'em as I sees fit. It is a desire I keep inside me, and easily so, when I am south. Freedom at best a fleetin' notion. But on travels north, if I can be true; I can hardly contain my wantin' for liberty. I am anxious for it. I am anxious to escape. But I am anxious all the same of the punishment that would attend my recapture. My question to you, suh, is of the best and surest method of effecting my flight.

SOLOMON

The only answer I can give -- Watch your opportunities and strike for freedom.

JASPER

What opportunities? And how shall I take advantage of them?

Solomon isn't sure how to respond. It's easy to speak of freedom, but not how it is gained.

WE HEAR THE BELL AT THE DOOR. It's Jasper's Master.

He's stern, clearly displeased.

FITZGERALD

Jasper! Jasper, come along.

(to Parker)

I apologize for any intrusion, sir.

SOLOMON

No, intrusion.

Fitzgerald looks to Solomon. It is a cold glare as though he wasn't speaking to, and has no interest in a response from a black man. Looking back to Parker:

FITZGERALD

Good day, sir.

The family now sits around the dinner table, the meal mostly finished. Solomon, the very definition of a man in repose - sits at the head of the table reading from a NEWSPAPER. He reads to the rest of the family solemn news of the funeral arrangements for the recently deceased President Harrison.

SOLOMON

"Thus has passed away from earth our late President. His voice was still fresh in the ears of his countrymen when it was hushed in death. The tongue of calumny had not time to poison his fame. He has passed from the praise of men to receive the plaudit of his heavenly Father. Let us in this bereavement bow meekly to the divine will, and hear the voice of the Sovereign of the Sovereign saying be still and be with God."

A long moment of quiet, the family continuing to eat.

Then, from Elizabeth:

ELIZABETH

Will you read it again?

Solomon starts from the top of the article.

SOLOMON

"During the morning, from sunrise, the heavy bells had been pealing forth their slow and solemn toll while the minute guns announced that soon the grave would receive its trust. Our city as well as our entire nation has been called to weep over the fall of a great and good man. One who was by the wishes of a large majority of our people raised to fill the highest place of trust within their gift. William Henry Harrison, the first chief magistrate who has died during his term of service."

12 INT. NORTHUP HOUSE - CHILDREN'S ROOM - NIGHT

12

The children are put to bed by both Solomon and Anne.

They are tucked in, and each given a kiss good night.

13 INT. NORTHUP HOUSE - BEDROOM - NIGHT**13**

Solomon and Anne are now preparing for bed themselves.

Anne washing her face in a basin as Solomon changes into his night clothes. The limited interaction of the two should be very perfunctory. Like many married couples they've just become very accustomed to one another.

14 EXT. NORTHUP HOUSE - MORNING**14**

We are just outside the Northup house. A CARRIAGE waits with a DRIVER. Anne and the children are dressed for travel as the Driver loads bags into the carriage.

Anne gives her husband a kiss.

SOLOMON
Travel safely.

ANNE
Stay safely.

Anne and the children load up. The Driver chides the horse, and the carriage heads off. Solomon waves a hearty good bye to his wife and children.

15 EXT. STREET - DAY**15**

Solomon is now out for a stroll. As he crosses near MR. MOON'S TAVERN, he passes two men, two in particular, who stand outside conversing with MR. MOON himself: MERRILL BROWN and ABRAM HAMILTON. Brown is about 40, with a countenance indicating shrewdness and intelligence. Hamilton is closer to 25, a man of fair complexion and light eyes. Both are finely, if perhaps a bit garishly, dressed. Hamilton, as Solomon describes him, slightly effeminate.

Moon, spotting Solomon:

MR. MOON
Call the Devil's name -- There he is now. Mr. Northup -- I have two gentlemen who should make your acquaintance. Messrs. Brown and Hamilton.

BROWN
Sir.

MR. MOON

Mr. Northup, these two gentlemen were inquiring about distinguished individuals, and I was just this very moment telling them that Solomon Northup is an expert player on the violin.

HAMILTON

He was indeed.

BROWN

Taking into consideration his graciousness and your modesty, may we trouble you for a moment of your time to converse, sir?

16 INT. MR. MOON'S TAVERN - LATER

16

We make a jump cut into the tavern. Solomon, Brown and Hamilton are sitting at a table. Brown and Hamilton drink lightly. Solomon abstains.

SOLOMON

A circus?

HAMILTON

That is our usual employee. The company currently in the city of Washington.

BROWN

Circus too constricting a word to describe the talented and merry band with which we travel. It is a spectacle unlike most have ever witnessed. Creatures from the darkest Africa as yet unseen by civilized man. Acrobats from the Orient able to contort themselves in the most confounding manners. Men of great strength --

HAMILTON

And Mr. Brown himself; an internationally renowned pantomimist.

BROWN

You are too kind.

HAMILTON

As your talents are too great.

BROWN

We are on our way thither to rejoin the company having left for a short time to make an excursion northward for the purpose of seeing the country, our expenses paid by an occasional exhibition.

HAMILTON

The reason for our inquiry with Mr. Moon --

BROWN

Yes. We had just a devil of a time in procuring music for our entertainments. Men of true talent seemingly in short supply. As we were discussing our predicament, Mr. Moon suggested we make acquaintance with you, praising your skills at every opportunity.

SOLOMON

Gentlemen --

BROWN

We offer this, desperate as we are; If you could accompany us as far as New York -- We would give you one dollar for each day's service and three dollars for every night played at our performances. In addition we would provide sufficient pay for the expenses of your return from New York here to Saratoga.

HAMILTON

An opportunity to see the country with the occasional exhibition from which to accrue expenses. If there is any way in which you would give consideration to the offer --

SOLOMON

(enthusiastically)

I will give more than consideration. I will agree. Immediately. The payment offered is enticement enough, as is my desire to visit the metropolis.

Both Brown and Hamilton display broad smiles:

HAMILTON

We are delighted, sir. So
delighted. Though we would add that
our travel plans--

BROWN

We would like to depart with haste.
However, it is understood if there
are arrangements you need to attend
to.

SOLOMON

As luck would have it, my wife and
children are traveling. I will
write her of our plans, then we may
go.

17 INT. NORTHUP HOUSE - BEDROOM - LATER

17

Back in his house, we see Solomon packing: putting some
clothes in a travel case, and collecting his violin as well.

18 INT. NORTHUP HOUSE - STUDY - LATER

18

Solomon sits down to write a letter; pen poised over paper
with already a few lines written. But Solomon thinks better
of it.

WITH LITTLE THOUGHT HE TEARS THE PAPER AND SETS IT ASIDE. WE
SHOULD GET THE SENSE THAT THE ABSOLUTE VALUE OF BEING ABLE TO
COMMUNICATE BY LETTER IS LOST ON SOLOMON. THIS FACT WILL HAVE
GREAT WEIGHT IN THE NEAR FUTURE.

19 EXT. NORTHUP HOUSE - LATER

19

Solomon is exiting. Brown and Hamilton are waiting.

They ride in a covered carriage led by a pair of "noble"
horses.

HAMILTON

No letter to post?

SOLOMON

No need. My return would be as soon
as my family's.

BROWN

We're off then.

20 INT. PUB - EVENING

20

We find ourselves in a roadside pub. It serves the purpose of drinking and diversion, and little more. This is the locale at which Brown and Hamilton are currently engaged in putting on one of their "entertainments."

We see Hamilton at the door, collecting receipts. WHAT LITTLE AUDIENCE THERE IS, IS ALREADY IN PLACE. There is nothing more for Hamilton to collect. Brown is at the head of the space entertaining a PARSE AUDIENCE AND NOT OF "SELECT CHARACTER." Solomon provides the music on his violin.

As Solomon plays, Brown goes through and act of pantomiming the throwing of balls, dancing on a rope, frying pancakes in a hat, causing invisible pigs to squeal. Basically it's some pretty lame stuff. Not nearly the calibre one would expect to find as part of a great "carnival."

21 INT. BOARDING HOUSE - LATER

21

Solomon, Hamilton and Brown sit down to eat. Hamilton and Brown drink, but again Solomon abstains. Though Solomon remains cool, Hamilton and Brown put up a great show of being disappointed as Hamilton counts out what little money was collected.

HAMILTON

If it's not anything, it's next to it.

BROWN

I have not seen an audience so sparse --

HAMILTON

Not an additional tip from a one of them. They expect to be entertained for nothing.

BROWN

And not satisfied a bit despite giving them more than what they paid for.

SOLOMON

It's the national mood. There's too much grief to make room for frivolity.

BROWN

I think we won't see a true audience until Washington. We should make it our objective to return with all due speed.

HAMILTON
My sincerest apologies, Solomon.

SOLOMON
No need.

HAMILTON
You were promised opportunity, and you were given none.

BROWN
The opportunity is with the circus. A two man show poorly promoted, what were we to expect? But the circus bills itself.

HAMILTON
True.

BROWN
It arrives to each town with a hoopla and leaves with a flourish.

HAMILTON
Very true.

BROWN
And with the summer season approaching it's tour will be vigorous. I have told you of the circus with which we are connected. Creatures from the darkest of Africa. Acrobats from the Orient who--

SOLOMON
You have described it, yes.

BROWN
Magical. It is simply magical. A constant whirlwind of sights and sounds. All witnessed by a crush of humanity, excitement spilling from their hearts. Yes. We need to return immediately to Washington. Solomon -- I believe us familiar enough now, but forgive me if I am bold -- would you consider making the trip with us?

Solomon gives a bit of a laugh at the idea.

BROWN

I realize our promises have fallen short to this point, but I can guarantee high wages and an enthusiastic audience.

HAMILTON

Entertaining at pubs and inns has it's place, but a man of your skills deserves better.

BROWN

Hear, hear.

HAMILTON

And more importantly you would build your own name and following. 12 Years a Slave 05.18.11 13.

HAMILTON

The circus tends to attract those with the highest of reputations. An introduction here and there could amount to a lifetime of reward. Now would be the time. With your family away, an opportunity presents itself.

BROWN

Said as fellow artists as well as a businessman. Well worth the effort at least.

Solomon considers -- Clearly their aggrandizing has an effect on Solomon.

SOLOMON

You present a flattering representation. How can I say no?

HAMILTON

Oh, very good, sir. Very good. I cannot recall being so excited.

BROWN

There is a practical concern. If you are to continue one with us you should obtain your free papers.

SOLOMON

Not necessary.

BROWN

Here in New York, no. But we will be entering slave states and as a matter of precaution -- It's to all our benefit we should not have to come to account for your well being.

HAMILTON

Six shillings worth of effort could well save much trouble later.

BROWN

We'll go to the Customs House in the morning, then travel on. Good business all around.

22 INT. CUSTOM HOUSE - MORNING

22

We are in a PORT-SIDE BUILDING housing the offices for the government officials who process paperwork. Solomon is filling out paperwork as Hamilton and Brown watch. A CUSTOMS OFFICIAL transcribes the information into a sizable ledger. He stamps the paper, then hands it back to Solomon.

CUSTOMS OFFICIAL

Your free papers, Mr. Northup.

Finished, the Official walks the ledger back to a row of shelves, and replaces the book among MANY, MANY others.

Though Solomon gives it no thought, it's a little daunting to consider how precarious his freedom is once consigned to this ledger.

23 EXT. WASHINGTON - DAY

23

Far from the bureaucratic seat of government it is now, the Washington of the era is as much swampland as city.

Still, the elements that are urban are extraordinary.

The Capital Building, the White House -- At this time the Washington Monument would not yet have been constructed.

At the moment the populace is displaying both sorrow and anticipation. Sorrow for the loss of the President and anticipation of his funeral. Many are dressed in black, and black crepe hangs nearly everywhere. As well, there are portraits of Harrison at varying locations.

Having arrived in Washington, Solomon, Hamilton and Brown RIDE IN ON THEIR CARRIAGE.

24 INT. GADSBY HOTEL - DINING ROOM - EVENING

24

It is a fairly nice hotel. Solomon, Hamilton and Brown are among several parties eating a meal in the hotel's dinning room. As with seemingly everywhere in the city black crepes accessorize the background. Brown counts out \$43.00 on the tabletop. IN COIN. Solomon is astonished by the amount.

BROWN

Forty-three dollars. All to you.

SOLOMON

That -- it's far more than my wages amount to.

BROWN

An advance from the circus. I cannot tell you -- I honestly wish you had seen the expression of our director when I described your abilities. He was fairly overcome with excitement.

HAMILTON

You should have invited him to sup with us.

BROWN

I did. I did, but so many preparations before the company is to depart.

SOLOMON

Gentlemen--

BROWN

Of which I have other news, only slightly distressing. Our departure is delayed by a day--

HAMILTON

Oh, Dear --

SOLOMON

You have already been far to generous.

BROWN

But only a day. All the confusion with tomorrow's procession makes departure difficult. Solomon, if you can tolerate us a day more --

HAMILTON

Oh, yes, Solomon, you did want to see the city. And how could we make our way without seeing the great man pass? One more day, Solomon. Will you stay on?

Relenting, but happily so:

SOLOMON
What can I say but yes?

25 EXT. WASHINGTON AVENUE - DAY

25

It is the day of the funeral procession. Despite the pall, there is, too, a great pageant on display.

Harrison is, after all, the first American Head of State to die while in office. There is the roar of cannon and the tolling of bells.

We see the FUNERAL PROCESSION: carriage after carriage in long succession with thousands following on foot - all moving to the sound of melancholy music. Though solemn, it is very much parade like with the populace pushing and shoving to get a better look at the procession as it passes. Solomon, Hamilton and Brown among them.

26 INT. PUB - LATER

26

A decent though crowded, smoke-filled joint. Very lively. Solomon is with Hamilton and Brown, who again drink. Solomon seems far more interested in heading out to take in the city. The pair must talk over the crowd:

SOLOMON
May we see the President's House?

HAMILTON
Eh?

SOLOMON
You said yesterday we might go and visit--

HAMILTON
Far too crowded at the moment. We have time for that, Solomon. All day. A great man has passed. Remember him with a drink.

Both Hamilton and Brown hold up their canters to drink.

Solomon, a bit reluctantly, does the same.

BROWN
Another. Our departed President
deserves all the salutation we can
imbibe.

Hamilton and Brown drink again, and Solomon does as well.

27 EXT. ALLEY - LATER

27

WE MAKE A HARD CUT to Solomon outside of the Pub, in an alley, with Brown and Hamilton. He is violently ill, hunched over and retching horribly.

HAMILTON
That's all right Solomon. No shame
in it. No shame at all.

SOLOMON
I'm not -- uugh -- not much of a
drinker.

HAMILTON
Just let those ill feelings out.

BROWN
Suppose we won't be going to the
Presidential Mansion. Shame.

HAMILTON
It is. Tis a damn shame. All the
more if Solomon can't summon
himself. We need to get you to
where you can rest.

28 INT. GADSBY HOTEL - SOLOMON'S ROOM - NIGHT

28

Hamilton is placing a spittoon near Solomon's bed, where a prone and reeling Solomon lays. Hamilton sits on the bed. As he strokes Solomon's sweaty face, Hamilton speaks sweetly.

HAMILTON
I'm afraid that Brown and I haven't
brought you much luck. But rough
waters bring smooth sailing.
Eventually they do.

SOLOMON
So -- so sorry --

HAMILTON

Shhh. We won't hear it. We won't.

BROWN

Let him sleep.

HAMILTON

Hmm. A good night's sleep. And tomorrow -- tomorrow you will feel as well and refreshed as though the earth were new again.

Hamilton lingers a bit too long and a bit too close to Solomon for Brown's taste. With more than a bit of signification:

BROWN

Hamilton! Nothing more we can do for him.

Displaying an odd sort of disappointment, Hamilton slinks away from the bed. He crosses to, and BLOWS OUT A CANDLE. The room goes dark with a blackness more than night. Brown and Hamilton exit. Solomon lays in the dark and moans. His sounds becoming MORE AND MORE DISTRESSED. It's a wonder if he can make it through the night.

29 INT. GADSBY HOTEL - HALLWAY - LATER

29

The door to Solomon's room creeps open. Disheveled, Solomon ekes out into the hallway. His clothes are soaked with his own sweat and stained with vomit.

Gingerly, unsteadily, Solomon makes his way through the space. The hotel seeming oddly and creepily empty at the moment. Eventually, Solomon arrives to a KITCHEN where he comes upon some "COLORED" SERVANTS. Solomon does everything in his power to right himself. Despite being sweaty and covered in his own bile, Solomon works actually struggles to make himself seem presentable.

SOLOMON

Water, please. May I have water?

A FEMALE SERVANT pours a glass of water which Solomon gulps down, spilling as much on himself as actually taking in.

GADSBY SERVANT

More, sir?

Again working to be proper:

SOLOMON

It's sufficient.

As he came in, Solomon makes the same effort to propel himself from the space.

30 INT. GADSBY HOTEL - SOLOMON'S ROOM - LATER

30

Solomon is back in bed. From his moans and cries it is quite plain that a single glass of water was not sufficient to ease his pain by any means. From the noises he makes, Solomon sounds as though he's in a fever dream.

As Solomon reels, THE DOOR TO HIS ROOM OPENS. THREE FIGURES ENTER. Backlit as they are, we cannot discern their features. We can tell only that they are men of decent size. They take hold of Solomon and carry him away, Solomon too weak and feverish to resist.

THE DOOR CLOSES RETURNING THE ROOM TO DARKNESS.

31 INT. BURCH'S DUNGEON - MORNING

31

Solomon stirs, then slowly awakes to his new circumstances. He finds himself in a nearly lightless room about twelve feet square with walls of solid masonry. There is a thick and well-locked door, a small window covered with iron bars and a shutter. The only furniture is a wood stool and an old fashioned, dirty box stove.

As Solomon rises he sees that he is in chains, his HANDS CUFFED, the chain running to a bolt in the ground and his LEGS IN IRONS. At first Solomon is incredulous. But that emotion is replaced first by fury and then panic. He begins to pull on the chains, fight against them. He does so with increasing desperation.

Solomon flails about, the sounds of the steel chains whipping and beating against the masonry. He grunts and screams without regard as the cuffs and irons bite into his flesh, but he cannot pull himself free.

After several minutes of intense effort, Solomon tires, slows, then finally he collapses. And in this collapsed state he remains.

32 INT. BURCH'S DUNGEON - LATER

32

Solomon again awakens. He hears sounds beyond the door -- footsteps. Eventually the door opens. Enter JAMES BURCH who runs the slave pen and EBENEZER RADBURN who works as a turnkey and overseer.

As the door opens, this is the first light to seep into the otherwise near-black room. The shine is painful to Solomon's eyes. With no salutation whatsoever, Burch asks:

BURCH

Well, my boy, how yah feel now?

Solomon rises up as best he can. With all the resolve he can put together he states what he considers to be fact:

SOLOMON

I am Solomon Northup. I am a free man; a resident of Saratoga, New York. The residence also of my wife and children who are equally free. I have papers. You have no right whatsoever to detain me--

BURCH

Yah not any--

SOLOMON

And I promise you - I promise - upon my liberation I will have satisfaction for this wrong.

BURCH

Yah no free man. And yah ain't from Saratoga. Yah from Georgia.

A moment. Not a word spoken among the trio, but Solomon and Burch do some serious eye fucking, neither man yielding. Burch says again:

BURCH

Yah ain't a free man. Yah nothin' but a Georgia runaway.

Burch waits for Solomon to acquiesce. Solomon does not in any way. Both men exchange a long and daring stare.

They are clearly at an intellectual standoff. Burch, leans to Radburn, SAYS SOMETHING WHICH WE CANNOT DISTINGUISH.

Radburn exits the room, his physical absence is a long moment. But all the while WE CAN HEAR Radburn's footfall and his rummaging in the next room. The unseen is disquieting.

Finally Radburn returns with a pair of "instruments:" a paddle - the flattened portion, which is about the size in circumference of two open hands, and bored with a small auger in numerous places. He also carries a whip.

A cat-o-nine tails; a large rope of many strands. The strands unraveled and a knot tied at the extremity of each. Burch says again:

BURCH

Yah a runaway nigger from Georgia.

Solomon stands with a quiet stoicism. He will say nothing of the kind.

As that is the case, Solomon is seized by both men, and roughly divested of his clothing. He is pulled over the bench, face downward. Radburn then STEPS ON HIS CHAINS holding Solomon down in a bent position.

Without preamble, Burch begins to beat Solomon about the back with the paddle. Burch strikes him wordlessly, no taunting, no sneering. Solomon screaming against each blow. His back immediately SWELLING WITH WELTS AND BRUISES.

This beating continues on and on and on until quite literally Burch WEARS HIMSELF OUT with the effort.

Dripping in sweat and panting:

BURCH

Yah still insist yah a free man?

SOLOMON

I -- I insist --

Burch regrets hearing this. Not from sympathy, but rather because he's nearly too tired to go back to beating Solomon. Yet, as if returning to work, Burch returns to pummeling Solomon. This time Burch punctuates the blows with:

BURCH

Yah a slave. Yah a Georgia slave!

Burch continues to strike, and strike -- This time until the paddle SNAPS IN HALF. Burch then GRABS THE WHIP.

Hardly missing a stroke, he whips Solomon relentlessly, the flails cutting into Solomon's back. Again, Burch's arm tires before Solomon "breaks."

BURCH

Are yah slave?

SOLOMON

No --

BURCH

Are yah slave!

Nothing from Solomon. Burch goes back to whipping and whipping, and whipping -- SOLOMON'S BACK IS NOW TORN OPEN WITH LACERATIONS AND OOZING WITH BLOOD.

Finally Burch can whip no more. As he pours sweat and sucks air he chastises a limp Solomon:

BURCH

I don't want to hear any more shit about you bein' "entitled" to your freedom, about being kidnapped or anythin' whatever of the kind. I swear what yah jus' got'll pale to what ya'll receive.

Taking up their instruments Burch exits. Radburn lingers for a moment. He takes the irons off Solomon's legs.

Opens the window some. As he makes these gestures, in a patronizing and confidential manner, one wrought with poor sincerity::

RADBURN

I seen a good many of the black kind just where yah're; on the floor face down and back bleedin'. Sick. Make me sick. Often times the situation was resolved, and I think; what was all the beatin' and abuse for? Things end as they should, and the violence was for naught. So why cause trouble when they ain't no cause for it? Be of a cooperative nature, and things don't need be particularly unpleasant.

(to Robert)

Or, yah can carry on like yah been, and I fear yah won't live to see Sunday next.

With that thought, Radburn exits. Solomon rests. But to rest seems like giving in to defeat. He begins pulling on his chains. But for all his struggling, the chain loosens none. Solomon calls out:

SOLOMON

Help me! Someone help me!

If anyone at all hears him, they do not respond. Solomon continues his plaintiff cry for assistance.

33 EXT. BURCH'S DUNGEON - CONTINUOUS

33

Beginning with a TIGHT SHOT on the shuttered, barred window of Burch's dungeon, Solomon's cries barely eking beyond the space.

THE CAMERA PULLS BACK from the building, onto the city until clearly visible is the Nation's capital. It's icon's of freedom, the WHITE HOUSE, the CAPITAL BUILDING, fairly mocking Solomon's captivity.

34 INT. BURCH'S DUNGEON - DAY

34

IT IS DAY NOW. The door to the yard is thrown open. The harsh white light floods all over Solomon. He steps out into a YARD.

35 EXT. BURCH'S DUNGEON - YARD - CONTINUOUS

35

It is a yard just beyond Burch's. The yard is hemmed in by a brick wall. In the yard are two men, and a boy.

The oldest is CLEMENS RAY a man of about 25 years of age.

He is well educated, but overwhelmed with fear by the situation. JOHN WILLIAMS is about 20 years old. He is born and bred a slave, and is lacking in education.

Finally there is a child about 10 years of age who answers to the name of Randall. Randall is running around the yard chasing a butterfly.

For a long moment the three men just stare at each other, wary of one another. Though they are clearly in similar circumstances, for the moment they choose to keep their distance.

Radburn is ever present, though he remains off to one side.

Randall runs up to Solomon, asks rather innocently:

RANDALL

Do you know when my mama will come?

Solomon doesn't know what to say. Before he has a chance to answer Radburn crosses over and shoos Randall away.

RADBURN

Get away from him.

RANDALL
When will my mama come?

RADBURN
Yah hear? Get.

Randall runs off. The three men maintain their distance.

36 INT. BURCH'S DUNGEON - EVENING

36

Radburn brings food into Solomon, the shriveled meat and some water. Just barely enough to sustain Solomon. This time Radburn also has a SHIRT.

RADBURN
Brought a shirt. That old thing of yours is just rags and tatters. Need something proper to wear.

Solomon doesn't move for the clothing.

RADBURN
Go'won. Put it on.

With slow defiance, Solomon does as instructed. He removes what remains of his old shirt - the one he was wearing when first kidnapped - and puts on the one Radburn brought him. The shirt's ill-fitting and dirty.

Despite that, Radburn says:

RADBURN
There. Tha's fine. Tha's fine. Got no gratitude?

SOLOMON
Thank you --

RADBURN
Yah keep bein' proper, yah'll see how things work out.

Radburn starts to take the old shirt.

SOLOMON
No! It was from my wife.

RADBURN
Rags and tatters. Rags and tatters.

Taking the shirt, the "rags and tatters" as he calls them, Radburn exits, locking the door behind him.

Solomon sits with the plate of food before him. He pushes the plate away rather than eat.

37 EXT. BURCH'S DUNGEON - YARD - DAY

37

Solomon, Clemens Ray, John and Randall are in the yard.

ALL STAND NAKED. Though they try to cover their privates a bit, they are all aware of the uselessness of modesty.

Radburn is present. He has before him A COUPLE OF BUCKETS OF COLD WATER. He throws water on the naked men.

RADBURN

Go on. Warsh up.

The men, soaking in humility as well as water, begin to scrub with A SINGLE HARSH BAR OF SOAP passed among them.

RADBURN

The boy, too. Get him clean.

Solomon takes some soap and rubs it over Randall.

RADBURN

Scrub now. Git 'em clean.

Solomon scrubs harder. Randall, clearly cold and uncomfortable, begins to cry, becoming nearly inconsolable.

RANDALL

Mama! Mama! Is she going to come?

RADBURN

Hush him up!

Doing all he can to spare the child from a certain beating:

SOLOMON

Quiet, please.

RANDALL

Mama!

RADBURN

Shut him up!

Saying anything to keep the boy quiet:

SOLOMON

Your mother will come, I swear she
will, but you must be silent.
Please. Be silent!

On the seeming strength of Solomon's promise, Randall goes silent. Solomon looks to Radburn, who just throws water on the soapy men.

38 INT. BURCH'S DUNGEON - EVENING

38

Again Solomon sits alone in his dungeon. Again a plate with a shriveled piece of meat is brought in by Radburn and set before him. And yet again Solomon pushes the plate away. A moment after Radburn leaves, then Solomon PICKS UP THE PORK AND BEGINS TO FEED ON IT. It's as if he's resigned himself to his circumstances. As he eats on the meat we hear:

SOLOMON (V.O.)
This can't stand. It is a crime.

39 EXT. BURCH'S DUNGEON - YARD - DAY

39

Sitting together out in the yard are Clemens Ray, John and Solomon. Over time they have drawn trustworthy enough to speak with one another. At the moment Solomon is still trying to apply reason to the situation.

Randall wanders about in the background. As usual, he calls out for his "Mama." By now, however, his calls should feel like little more than background noise.

SOLOMON
I believe now someone lay in wait
for me. My drink was altered
We are free men. They have -- they
have no right to hold us.

Solomon waits for a response from the others. They give none.

SOLOMON
We need a sympathetic ear. If we
have an opportunity to explain our
situation, it is impossible for me
to believe men could be so unjust
to detain us as slaves once the
truth of our case is known.

CLEMENS
Who in your estimation is that
sympathetic ear?

SOLOMON

The two men I journeyed with; Brown and Hamilton. I'm certain they're making inquiries at this very moment.

CLEMENS

I would be just as certain they are counting the money paid for delivering you to this place.

SOLOMON

They were not kidnappers. They were artists. They were performers.

CLEMENS

You know that?

SOLOMON

I -- I have no reason to--

CLEMENS

You know for certain who they were?

40 FLASHBACK

40

Very quickly, we get an MOS glimpse from Solomon's POV of BROWN PERFORMING BACK AT THE TAVERN. His act is shit, and with 20/20 hindsight perhaps it is even a bit shittier than we recall. The man an artist? Hardly.

41 EXT. YARD - CONTINUOUS

41

Solomon's got to reconcile that recollection of his.

Brown sure wasn't a performer of any merit. More like a charlatan. As Solomon considers that fact, Clemens states very plainly:

CLEMENS

How I reckon the situation: whatever past we had -- well, that's done now. The reality to come is us being transported southward. New Orleans if I were to venture. After we arrive, we'll be put to market.

Clemens Ray chokes a bit. The horrid fate waiting for them becoming quite clear to him.

CLEMENS

Beyond that -- Well, once in a
slave state I suppose there's only
one outcome.

John's anxiety grows.

JOHN

No.

CLEMENS

I don't say that to give you empty
agitation --

JOHN

For y'all. For y'all they ain't
nothin' but that! But John was'n
kidnapped. John bein' hold as debt,
tha's all. Massa pay his debt, and
John be redeemed--

CLEMENS

Boy--

John is nearly beside himself with panic.

JOHN

Now John's -- John's sorry for
y'all, but tha's how it be. Where
y'all goin', yah goin' witout John.
Massa take care of me. Massa take
care.

RANDALL

Mama!

All three men turn and look. At the moment Randall doesn't
call out emptily. At the door to the yard is Burch along with
two women. One in her late twenties; ELIZA. She is "arrayed
in silk, with rings upon her fingers, and golden ornaments
suspended from her ears."

Though a slave, Eliza was a mistress and has to this point
lived well. This is reflected in her airs and her speech. The
other is a little girl, light in skin color, of about seven
or eight. This is EMILY, Randall's half sister.

As she enters the yard Eliza squeals with high delight, then
breaks into tears of both sorrow and joy. Clearly this is
mother and child being reunited.

As Burch locks the yard door, Eliza clutches both her
children. She is overcome with emotion.

ELIZA

My darlings. My sweet, sweet babes.

42 INT. BURCH'S DUNGEON - EVENING

42

Later in the evening. Solomon now shares his space with Eliza and her children. As the children rest, Eliza drops into a lament as if pleading her case to Solomon who lends a sympathetic ear.

ELIZA

Poor innocent things. They know nothing of the misery they are destined to endure. The years previous will have been bliss by comparison.

Both slyly, and with a bit of aggrandizement:

ELIZA

I had my master's favor, do you understand? Above even his own wife, I had it. Do you know that he built a house for me? Built it only on the sole condition that I reside there with him. The added promise in time I would be emancipated. And for nine years he and I cohabited. And in that nine years he blessed me with every comfort and luxury in life.

Displaying the finery she still wears:

ELIZA

Silks and jewels and even servants to wait upon us. Such was our life, and the life of this beautiful girl I bore for him. But Master Berry's daughter -- she always looked at me with an unkind nature. She hated Emily no matter she and Emily were flesh of flesh. As Master Berry's health failed, she gained power in the household. Eventually, I was brought to the city on the false pretense of our free papers being executed. On our arrival, instead of being baptized into the family of the free, we were delivered into stricter bondage. If I had known what waited I would not have been brought here alive. I swear that.

Eliza looks to Solomon. But there is no response that comes easily on the heels of all that's been said. All they can do is share Eliza's lament. She turns to her children, says again:

ELIZA
My poor children. My poor, poor
babies.

43 BLACK

43

44 INT. BURCH'S DUNGEON - NIGHT

44

It's the deep of night, all are sleeping. A KEY TURNS IN THE LOCK AND THE DOOR OPENS. Burch enters with Radburn beside him. Both carry LANTERNS with them. Hardly giving Solomon and Eliza a moment to rouse themselves, Burch demands:

BURCH
Come on. Get yer blankets. Get up.

Sensing that things will not end well:

ELIZA
No, please don't --

BURCH
I don't want to hear yer talk. Get
in the yard.

ELIZA
Please --

Radburn, stepping in, seeming reasonable:

RADBURN
Ain't no need for all that. Yah
frightenin' the chil'ren.

Putting hand to Randall's head.

RADBURN
Jus takin' a li'l trip, tha's all.
Don't want to frighten the chil'ren
none over a li'l boat ride, do yah?

Eliza gives a shake of her head to the negative.

RADBURN
Alright then. Git yerselves up.

45 EXT. BURCH'S DUNGEON - YARD - NIGHT**45**

We now have Solomon, Clemens, John, Eliza and the children. They are being cuffed together. As John is cuffed, he pulls back. Scared. He beings in desperation:

JOHN

John's massa gunna pay his debt.
John's massa gunna come for him.

Not wanting to hear any of this talk, Burch strikes John several times in the head with a sap-like instruments.

Weakened, but again:

JOHN

John's massa gunna--

Burch again strikes John until he's quiet. Curiously, Emily and Randall don't even flinch. Why would they?

They are quite used to seeing this kind of violence.

BURCH

Not a word out of none a yah. Not a word.

46 EXT. STREET - NIGHT**46**

Quite literally in the manner of thieves in the night, Burch and Radburn hustle along their stolen "property."

The streets are deserted. There is no one to help Solomon and the others if they tried. The group is taken down to a wharf and a waiting STEAMBOAT.

47 EXT. ORLEANS - CONTINUOUS**47**

The slaves are taken quickly up a gangplank and onto the boat as the CAPTAIN AND CREW WATCH, but do not interfere.

48 INT. ORLEANS - HOLD - NIGHT**48**

The slaves are hustled down into a dark, dank hold among barrels and boxes of freight...and RATS, where they are chained to the hull of the ship. Burch comes around and "checks" the chains; makes sure they are all secure and locked. Satisfied, he heads up out of the hold. Radburn follows. Alone in the dark in the hold, Clemens Ray cries, as does Eliza.

49 EXT. ORLEANS - NIGHT**49**

The crew casts off, and the steamboat launches, setting off down the Potomac into the night.

50 EXT. RIVER - MORNING**50**

By the first rays of the new morning sun, we see the steamboat making its way down the river. THE SHORELINE LINED WITH GREENERY.

51 INT. ORLEANS - HOLD - MORNING**51**

Radburn removes the shackles from the slaves and they are taken up to the deck.

52 INT/EXT. ORLEANS - DECK - CONTINUOUS**52**

The slaves are brought over to a small table on deck.

They are seated, and are served food by a MULATTO WOMAN.

On occasion WHITE PASSENGERS make their presence known.

Burch comes around to the slaves, a bottle of liquor in hand. He offers a drink to each of the men.

BURCH

Drink?

The men know better than to demur, and take what's offered. Burch plays coy, then pours a healthy-sized drink and offers it to Eliza. The salaciousness of the act cannot be hidden.

BURCH

It's good. Nothing harsh.

She drinks, and Burch pours her another. Clearly Burch is trying to get her greased up.

ELIZA

No. No more, thank you.

Unhappy with the outcome of his efforts, Burch sulks away. The Mulatto woman could not help but overhear.

Drawing close to Eliza, offering what she considers sage advice on the sly:

MULATTO WOMAN

You should cheer up. Don't do to be
 so down cast. Take what's offered.
 Things needn't be no harder than
 they are. And if you're wise -- and
 I can see by your wares that you
 are -- Well, a wise woman makes her
 situation as pleasant as she can.
 For herself --

Stroking Emily's hair

MULATTO WOMAN
 For her child --

Eliza slaps the woman's hand away.

ELIZA
 Don't touch her! She will not be
 like you.

MULATTO WOMAN
 Then she be a slave. Like you.

53 EXT. NORFOLK - PORT - DAY

53

The Orleans arrives to Norfolk and is docked. MORE SLAVES about 15 in all, of various genders and ages are brought on board. Chief among them is ARTHUR, who fights viciously with his captors. His face swollen and covered with wounds and bruises. One side of it is a complete raw sore. "With all haste" is shoved down into the hold.

Another among them is ROBERT, who is about 19 years of age. He, like Solomon, is quiet. And like Solomon as well we can tell there is much going on behind his eyes; a good deal of silent plotting.

Having taken their cargo as far as they care or need to, Burch and Radburn depart. They do so without a word spoken to Solomon or the others.

With this new and sizable batch of slaves on board, the crew again CASTS OFF, and the Orleans makes its way again.

Solomon stares down Burch for as long as he can, as if wishing bad things. As if wanting to exact some measure of revenge. But the greater insult is that Burch and Radburn, engaged in conversation, take no notice of Solomon whatsoever. He is that insignificant to them.

That fact, that reality, makes Solomon boil with a rage he cannot express in words.

54 INT/EXT. ORLEANS - DAY

54

As the brig sails, the slaves are seated and huddle on deck. The CAPTAIN, along with his first mate - BIDDEE - move among them, looking them over for prospects to do labor. He demands of one MALE SLAVE:

CAPTAIN

Stand up.

Immediately, and with much trepidation, the slave does as told.

CAPTAIN

What can you do with yourself?

REED

I can -- I can clean.

CAPTAIN

You can clean? Mr. Biddee, get a mop in this one's hands and get him to swabbing.

BIDDEE

Sir.

The Captain continues to move among the slaves. Arriving to another:

CAPTAIN

Get up.

Again, and quickly, the slave does as ordered.

CAPTAIN

What can you do with yourself?

GEORGE

I'm a carpenter.

CAPTAIN

Got no need for that. Two weeks to New Orleans, you will find a way to make yourself useful.

GEORGE

I am able with a needle and thread. Any mending that you might--

CAPTAIN

Shovel coal is what you can do. Get him below, Mr. Biddee

The Captain keeps on until he arrives to ROBERT:

CAPTAIN
Stand up.

Unlike the others, Robert makes no move to stand right away.
With more assertion:

CAPTAIN
Get up.

Robert stands, but does so with little alacrity.

CAPTAIN
What can you do with yourself?

In quiet defiance Robert doesn't say a word.

CAPTAIN
Answer me!

ROBERT
Know how to cook.

CAPTAIN
Let me see your hands.

Robert does as instructed and holds out his hands. The
Captain looks them over.

CAPTAIN
Clean enough. Get on to the galley
and make yourself of use.

Robert moves away as the Captain continues on to Solomon.

CAPTAIN
Get up.

Solomon doesn't move. The Captain is clearly getting tired of
the mounting disrespect. He announces to the remaining
slaves:

CAPTAIN
The next one of you that refuses me
will be bound and thrown overboard,
I promise you that. Get up!

Solomon rises.

CAPTAIN
What can you do?

SOLOMON

I play the fiddle.

CAPTAIN
Got no need for that. What else?

SOLOMON
Some farm labor from my youth. As I
young man I worked a gang that
rebuilt a canal.

CAPTAIN
As useless to me as fiddling. Jack
of all trades and master of none.
You can carry a load, can't you?

SOLOMON
Yes.

CAPTAIN
Then do it. You'll haul from the
hold to the galley, and clean it
when you're done. Mr. Biddee,
another for your charge.

55 INT. ORLEANS - GALLEY - LATER

55

As slaves cook, Solomon cleans. He he scurries around gathering up scraps and places them in a box. As he cleans, Solomon watches as Robert preps the food. Robert obviously quite comfortable with a knife. He goes about his work with both speed and skill.

56 INT/EXT. ORLEANS - EVENING

56

Solomon is now up on deck emptying his box, throwing waste over the side of the vessel.

57 INT. ORLEANS - HOLD - LATER

57

Down in the hold the slaves eat, pray. SOME ARE SEA SICK AND THEY THROW UP. Among all this, Arthur sits and talks with Solomon. They are removed from the others, as much as they can be, and they are conspiratorial as Arthur tells the tale of how he came to be a captive.

ARTHUR

They was a gang of 'em. A true gang. My mistake: shortenin' my way home on an unfamiliar street. Well, they set right upon me. For whatever reason, they seen me and think I was low fruit. No, suh. Was no such a thing. I commence to swingin'. The resonance of every blow again' 'em a reminder of the family I would never again see if'n they prevailed. I fought 'em. Fought those damned kidnappers until all my strength left me. Fought 'em right to they beat me senseless. And here I was drug, and here I was dumped. They got no right to me. I'm free. Free as them.

SOLOMON

Do you think we can make ourselves free again? Do you think we can escape?

Arthur says nothing. He just gives a look to Solomon as if he's interested in listening to whatever Solomon has to say.

SOLOMON

The crew is fairly small. They don't seem particularly game. Do you think we can commandeer the ship?

ARTHUR

I know we git where we travelin', we'll wish we'd died tryin'. If we did take her, where'd we sail?

SOLOMON

New York harbor.

ARTHUR

can you get us there?

SOLOMON

I can make every effort.

Arthur considers things for a moment.

ARTHUR

There's the Captain, the Mate -- I count six sailors. If we tried for them one by one --

SOLOMON

What would we do? Once we've seized
the crew; what would we do with
them?

Very plainly:

ARTHUR

We kill 'em.

This sinks in for a moment, but clearly it is the only way.

SOLOMON

How would we take them?

ARTHUR

First in the mornin'. We'd be on
them before they knew what; quick
and merciless. Captain and mate
first. Waylay 'em, the others won't
be given ta fight.

SOLOMON

They will if they know death waits
for them.

ARTHUR

They won't know. The ones we don't
kill right off, we tell 'em they
can have their lives if they
submit. Question of when.

SOLOMON

As soon as we can. As soon as
tomorrow.

ARTHUR

Their guard is high. Oughta wait
for when they're not suspecting.
It's two weeks sail to New Orleans.
In five days, six days --

SOLOMON

All that much farther south.

ARTHUR

And they be all the more tired and
incautious. Make the chore easier.

Solomon considers this. It makes some sense. There remains,
however, an issue in his mind:

SOLOMON

We need a third. Even with luck on our side, two can't stand against eight. We have to bring another into the conspiracy.

Arthur looks around at the other slaves. He is unimpressed by their nature.

ARTHUR

They's niggers. Born and bred slaves. Cringe at so much as a white man's look. Not one's got stomach enough fo the fight. Not a damn one.

SOLOMON

We need another. Two alone will not succeed. With three we are nearly guaranteed.

Solomon looks among the slaves. There must be at least one more who's capable of mutiny. Clemens Ray?

John? Doesn't seem that way.

58 INT. ORLEANS - GALLEY

58

Solomon is back cleaning in the galley. As he cleans, he again watches Robert prep food. Robert's skill with a knife is not lost on Solomon.

59 INT/EXT. ORLEANS - DECK - LATER

59

It's now Solomon, Arthur and Robert talking, Robert having evidently been brought into the conspiracy.

Robert seems a little sweaty. Not nervous. Literally a light but constant sheen of sweat covers him.

SOLOMON

Captain and the mate sleep in the same cabin. The cook always sleeps in the galley, and crew's in the forecastle.

ARTHUR

We two, steal into the captain's cabin, be done with them. Don't leave, mama. Mama, don't leave me!

We get you a weapon. Sharp, blunt -
- don't matter. Wait outside the
crew cabin. Comes to it, you have
to hold 'em back 'til we can come.

ROBERT
After the deed, who'ta pilot us?

ARTHUR
Solomon.

ROBERT
Ya'ever pilot a boat?

SOLOMON
We head north. That's all that's
required.

ARTHUR
Then we're agreed. No turning away
now.

ROBERT
When?

ARTHUR
Three days. The morning of the
Sabbath.

60 INT. ORLEANS - GALLEY - DAY

60

Again we see Robert and Solomon working in the galley.

Robert doesn't look well. He sweats more than when we just
previously saw him. Despite how he might feel as Solomon
cleans around him, Robert is capable enough to secret a knife
into Solomon's garbage box.

61 EXT. ORLEANS - DECK - LATER

61

We see Solomon emptying the box overboard. As he does, he
collects the knife, looks it over for a moment as if
imagining killing with it, then quickly secrets it away.

62 INT. ORLEANS - HOLD - DAY

62

We see Robert down in the hold. Sweating profusely now, he is
also stained with vomit. The Captain is looking Robert over
as Biddee stands close by. THE CAPTAIN PULLS BACK ROBERT'S
SHIRT REVEALING A RASH, HIGHLIGHTED BY RAISED PAPULES. The
Captain knows exactly what he's looking at. With fear:

CAPTAIN
Smallpox.

This strikes all around like lightning. Like a curse that has fallen. The Captain states again:

CAPTAIN
It's smallpox.
(to Bidee:)
Get lime spread through the hold.
Keep them on deck, and for God's
sake keep them away from us.

BIDDEE
Sir.

63 EXT. ORLEANS - DECK - LATER

63

The slaves are mostly huddled. THEY ARE WATCHED OVER BY THE CREW. As things are, there will be no chicanery.

64 INT. ORLEANS - HOLD - LATER

64

A couple of days on now. Robert lays on a blanket down in the hold. He is a really, really pitiful sight, his body covered with pustules.

Solomon keeps clear of Robert, but sits with him.

Between wheezing breathes, he says very weakly:

ROBERT
Solomon -- Solomon --

SOLOMON
Yes?

ROBERT
I be right soon. I be right, then
we do as planned.

Solomon doesn't respond. He continues to maintain his vigil with Robert.

65 EXT. ORLEANS - DECK - DAY

65

Days later now. We are back up on the deck of the ship.

ROBERT'S STILL BODY IS BEING SEWN INTO A BLANKET.

Clearly he didn't make it, the ravages of the pox having done horrid work on his flesh.

Once sewn into the blanket. CREWMEN Then dump the body over the side of the ship. Solomon watches as the body churns for a moment in the wake of the vessel -- then sinks beneath the water. Arthur, with no sentimentality:

ARTHUR

Better off. Better than us.

Solomon continues to stare back at the spot where Robert was dumped as it slips further and further away.

From his pocket he takes the knife. He holds it for a moment, then lets it slip into the water. There is nothing to be done with it.

66 BLACK

66

67 EXT. NEW ORLEANS - PORT - DAY

67

The Orleans arrives to the port of New Orleans and docks.

The port is one of the busiest in the young nation, vessels of every shape and size, and flying a variety of flags arrive here. On the dock itself there is a bustle of activity as goods are loaded and unloaded. It's a bit of controlled chaos as a VARIETY OF LANGUAGES are spoken and shouted.

Two men among many are awaiting the arrival of the Orleans. They are WILLIAMS - Arthur's master and DAVIS who is the solicitor of Mr. Williams. They both look like they mean business. The moment the gangplank is laid they bum rush the vessel, Williams yelling for Arthur.

WILLIAMS

Arthur! Arthur!

Arthur, seeing his master, is nearly crazy with delight.

He is, uncharacteristically beside himself. Ironically, his master now represents "freedom."

ARTHUR

My master. Master Williams, sir!
Master Williams!

Arthur pulls on his chains for Williams, nearly pulling the other slaves with him.

Davis is no nonsense about the situation.

DAVIS
Who is in charge of this vessel?

CAPTAIN
I am the Captain.

DAVIS
I am the solicitor of Mr. Jonus Williams. I have documentation verifying that the Negro named Arthur is his property.

CAPTAIN
I know nothing of--

DAVIS
You are ordered by court to return that property immediately, or face charges of thievery.

CAPTAIN
My duty is to transport goods. I am not responsible for their origin.

ARTHUR
Sir --

WILLIAMS
It's all right, Arthur. Your abductors have been arrested and confined --
(to the Captain)
Remove these contraptions!

To his mate:

CAPTAIN
Free him!

Biddee does as ordered. Once free, Arthur hugs and sobs over his master as would a lost and then found child.

WILLIAMS
It's all well, now, Arthur. You will return home with me.

DAVIS
Consider this notice and warning.

Williams, Davis and Arthur head from the ship. Solomon rushes to the rail of the ship. He seems both desperate and hopeful of some aid from Arthur and Williams. But there is none forthcoming. Williams and Arthur continue on - Arthur not so much as even looking back in Solomon's direction. Solomon stands and watches as they fade into the environs and are gone from sight.

68 EXT. ORLEANS - DECK - LATER

68

Hours later. The slaves sit on the deck, baking in the sun, awaiting their fate.

THEOPHILUS FREEMAN a tall, thin-faced man with light complexion and a little bent moves along the deck calling out names from a list.

FREEMAN

Platt. Platt! Platt!

None of the slaves respond to him. He begins calling other names. The slaves STAND as they are called.

FREEMAN

Lethe. Clemens Ray. Eliza. Randall.

Emily. John. Platt. Platt!

Freeman looks around. He spots Solomon.

FREEMAN

Captain, who shipped that nigger?

CAPTAIN

Burch.

Freeman steps to Solomon. He gives him a looking over.

FREEMAN

Stand up.

Solomon does as told.

FREEMAN

Yah fit the description given. Why didn't Yah answer when called?

SOLOMON

My name is not Platt. My name is--

Freeman strikes Solomon hard across the face.

FREEMAN

Yer name is Platt, and I will learn
yah yer name so that yah don't
forgin' it.

(to the Captain)

Shackle my niggers. Get 'em to my
cart.

69 INT/EXT. CART - LATER

69

Solomon is carted off along with the rest of "Burch's stock:"
Eliza and her children, Clemens Ray, John and Solomon.

As they travel for the first time Solomon sees true and
severe slavery. These are not the visiting servants, such as
Jasper was back in Saratoga. These are humans held in strict
bondage - herded like cattle, working in "chain gangs."
Slaves are evident not merely by the color of their skin. The
residue and accessories of slavery are everywhere.

Blacks almost universally display scars.

THICK AND HEAVY DEAD TISSUE FROM LACERATIONS THAT WERE LEFT
UNTREATED, brands and are often missing limbs. Blacks are
held in all kinds of shackles, from simple chains to
elaborate bindings, to neck collars that are spiked. Some are
muzzled or forced to wear bits.

THESE IMAGES SHOULD BE A CONSTANT AND CONTINUAL CANVAS TO THE
PIECE. EVER PRESENT, BUT NOT REALLY COMMENTED ON AS THEY ARE
THE NORM. They should be a reminder that not only are people
being oppressed, but that there is an entire system of
oppression in place.

70 EXT. FREEMAN'S SLAVE PEN - LATER

70

"Burch's stock:" arrive at Freeman's slave pen. They are led
in by Freeman and his "HOUSE SLAVE" BOB a mulatto slave. The
yard is enclosed by plank, standing upright, with ends
sharpened instead of brick walls as with Burch's. Including
Burch's group there are about 30 SLAVES in the pen.

Solomon and the others look around and see nothing but
downtrodden and despondent faces who quietly stare back at
this new batch of arrivals.

71 EXT. FREEMAN'S SLAVE PEN - LATER

71

The slaves are in various states of undress, men and women
alike. They clean themselves, scrubbing with soap and water.
Women wash their hair. Men shave. Freeman walks among them,
inspecting them as they primp themselves.

72 EXT. FREEMAN'S SLAVE PEN - LATER**72**

The slaves are given new clothes. The men are given hat, coat, shirt, pants and shoes. The women frocks of calico and handkerchiefs to bind about their heads.

73 INT. FREEMAN'S - GREAT ROOM - LATER**73**

It's an odd, ironic scene. The slaves are in a large and fairly ornate room within Freeman's house. Bob plays a tune on a fiddle background music as Freeman tries to line up the slaves. It has the air of an etiquette class, though what Freeman is trying to do is coach the slaves into being more "sellable." He works with them in groups of five or so.

FREEMAN

Tallest to smallest, understand?
Are yah taller than her?

TALL SLAVE

Yes, sir.

FREEMAN

Then yah'd go before her, wouldn't yah?

TALL SLAVE

Yes, suh.

FREEMAN

Then do it. Move.

74 INT. FREEMAN'S - GREAT ROOM - LATER**74**

Freeman continues to instruct. He talks with a slave, a boy in his teens, with much condescension. As before, Bob plays a tune. Solomon, moment by moment, become more and more disgruntled by the playing.

FREEMAN

When yer called, do yah jus' shuffle over? No. No, yah do not. Yah move sprightly, understand?

The slaves nod.

FREEMAN

Lemme see yah do it. C'mon, boy.

The slave moves to Freeman quickly. Freeman smiles, rubs the slave's head.

FREEMAN

Tha's a boy.
 (to all)
 Yah see how this boy moves?
 Sprightly. Now, g'won back over
 there.

75 INT. FREEMAN'S - GREAT ROOM - LATER

75

The instruction from Freeman continues, as does the fiddling by Bob.

FREEMAN

Keep your head up. A sense of
 direction; that's how yah look
 smart. None of those saucer eyes.
 Rid yourself of that smile. Look
 like a goddamn grinnin' monkey. Put
 the least thought in yer head.
 C'mon, now. Think of somethin'.

As weary as he can be of Bob's playing, Solomon moves to Bob, he asks:

SOLOMON

Can you play a reel?

Bob, dismissive:

BOB

Nah. I don't know no reel.

SOLOMON

If I may --?

Bob, looks to Freeman:

FREEMAN

He sick a yah caterwauling. Let him
 play, boy. Le's see what he can do.

Bob reluctantly hands the fiddle over to Solomon.

Solomon tunes it a bit, then begins to play. His fingers stiff at first, he takes a moment to warm up. But as he warms up he is, despite the circumstances, masterful.

The slaves all clap along -- Some dance along. All admire his work. Freeman chief among them.

FREEMAN

Keep on. Keep on.

Solomon continues to play.

FREEMAN
Hella better than you, Bob. Hella
better.

Bob looks bitter as Solomon plays on.

76 EXT. FREEMAN'S - GREAT ROOM - DAY

76

An odd sort of sight, A JUMBLE OF ACTIVITY. CUSTOMERS have come to see Freeman's lot the room all gussied up with flowers. Freeman moves among them, displaying them as a rancher would prize chattel. Freeman makes the slaves hold their heads up "look smart" as he previously admonished them. They are made to walk briskly back and forth while customers feel their hands and arms and bodies, turn them about and ask what skills they possess. The Customers routinely make the slaves open their mouths and show their teeth.

At times a man or woman are taken off to the side, stripped and inspected more minutely.

Randall is made to run, and jump by a PROSPECTIVE BUYER.

Bob, as he's done previously, plays his fiddle.

As this occurs, as a BUYER looks over a MALE SLAVE his back lightly scared. Freeman gives the Buyer the soft sell.

FREEMAN
Too few strokes is a sign they
ain't been broken. Too many tells
yah never will. This is a well
tenderized nigger here.

The Buyer is more curious in Randall.

BUYER
Your price for the boy?

FREEMAN
You see how fit he is. Like ripe
fruit. He will grow into a fine
nigger. Six hundred, and that's
fair and final. I take him outside
these gates I can name my price.

BUYER
Will you accept a note?

Eliza is beside herself. She begs of the Buyer:

ELIZA

Please, sir, no. My baby boy, he's my baby. Please don't divide my family. Don't take my boy unless you take myself and my baby as well.

FREEMAN

Eliza, quiet!

ELIZA

You will have the most faithful slave in me, sir. The most faithful slave that has ever lived. There is no way that I will not serve, but I beg that you not take my child.

BUYER

How much for the lot?

FREEMAN

The woman is a value in herself. The child's a treasure. Three thousand.

The Buyer considers, then demurs.

BUYER

I'll have the boy alone.

ELIZA

Noooo! Please, God, no!

As the Buyer writes out a note, Freeman pulls the crying Eliza away Randall.

FREEMAN

I will beat the nonsense from you.

BUYER

Come on, lad.

They start away. Randall runs back, crying but endeavoring to be strong:

RANDALL

Don't cry, mama. I will be a good boy. Don't cry. I will keep my head up, and I will look smart. I will always look smart.

Freeman is wholly unmoved. He tears Randall away, thrusts him to the Buyer who then pulls the crying Randall from the room.

RANDALL

Mama! Mama!

ELIZA

Nooooo! Noooo!

All watch the price of slavery: the destruction of the family.

77 EXT. FREEMAN'S SLAVE PEN - NIGHT

77

We are back in exterior slave pen of Freeman's estate.

The slaves are bedded down under the night sky. There is little sleeping going on. Eliza cries to herself as OTHER SLAVES MOAN LOUDLY AND CONTINUALLY. SOLOMON AMONG THEM. It as though a pall has fallen over the group.

Eventually at the door to the yard appears Freeman with a lantern in hand. Bob is at his side. With no concern for its causation, Freeman is clearly displeased by the racket.

FREEMAN

Quiet! Sleep, now! What's the matter with y'all? Sleep!

He looks to Bob.

FREEMAN

Make 'em sleep.

Bob now wades into the field of slaves. He shoves and kicks at the offenders, telling them repeatedly:

BOB

Sleep now. C'mon, go on to sleep.
Yah hear Massa Freeman? Sleep.

The moaning continues. Bob's efforts do little. If anything, the moaning grows louder. Solomon is insistent:

SOLOMON

We need a doctor --

78 EXT. FREEMAN'S SLAVE PEN - DAY

78

Freeman clearly having no choice but to give in and hire a doctor; DOCTOR CARR looks over Clemens Ray.

CLEMENS

The pain in my neck and back is violent. I'm hot and I cannot stop with my shaking.

DOCTOR CARR

(to Freeman:)

Could be any number of things. They seem otherwise in good health. I wouldn't expect it to be anything stronger than a passing fever.

Solomon, hearing this, speaks plainly:

SOLOMON

Smallpox. On the ship that brought us down one of our number died of the disease.

The doctor stares at Solomon for a moment. Clearly this development isn't a good thing.

79 EXT. STREET - LATER

79

Solomon, Eliza, Clemens Ray, John and a few more sickly slaves are being driven in a wagon by Dr. Carr.

80 EXT. CHARITY HOSPITAL - LATER

80

The group arrives to CHARITY HOSPITAL which is built just outside of the city. It is a fairly large, three story structure of white marble.

Around the back of the hospital the group sees COFFINS BEING BUILT AND PREPARED BY CARPENTERS. Dozens and dozens of them. Not exactly a comforting sight.

81 INT. CHARITY HOSPITAL - LATER

81

The group, led by Doctor Carr, enters. Though a hospital, it doesn't really seem a place for healing.

More a place for dying; a place where the sick are brought and kept until they can be delivered to the death which waits for them. As if to underscore this, we CAN HEAR THE MOANS OF PATIENTS drifting through the hallways.

82 INT. HOSPITAL - PATIENTS WARD - LATER

82

It is a large and not particularly sanitary room filled with row after row of beds. Nearly all the beds are filled with patients of both sexes and all ages. In this ward, ALL THE PATIENTS ARE BLACK, and all are suffering from smallpox. There is very little treatment going on.

Mostly the patients are being made "comfortable," though even that is relative.

With a few WHITE NURSES - but mostly BLACK WARDS looking on the slaves are stripped of their clothing and given hospital gowns to wear. As they dress, the group hears THE TOLL OF A BELL.

83 INT. HOSPITAL - PATIENTS WARD - LATER

83

A couple of days have passed. Solomon lays in bed next to Clemens Ray. We are at the height of Solomon's illness. As with Robert, he is a hideous sight. There are pustules all over his body, and Clemens as well.

Solomon is nearly blind with pain and suffering. His cries are pitiable, and blend with the continual wail that comes from the room.

84 INT. HOSPITAL - PATIENTS ROOM - LATER

84

Solomon is being given care by a BLACK WARD. His puss sacks are being drained. ON OCCASION, IN THE BG, WE HEAR THE SOUND OF THE BELL TOLLING. Solomon looks over to Clemens who is in a more advanced state. In some ways it's as though Solomon's looking at future projection of himself. Is this what's waiting for him? And under the circumstances would such an end be so bad?

85 INT. HOSPITAL - PATIENTS ROOM - LATER

85

Again, days on. A DOCTOR covers Clemens Ray with a blanket. Clearly he is dead. The doctor sends off a WARD. A few moments later, as the body is being taken away, THE BELL TOLLS.

As he lays in bed, Solomon's head lolls to one side. He looks toward the WINDOW. The light of the sun flares off the pane. The glass, poorly made, refracts the sunlight and casts off a slight spectrum of color. It dances across Solomon's face. The light in his eyes offering him more pain the solace, but he cannot help but look at it. As he looks toward the light, as his eyes flutter between life and lifelessness --

86 INT. NORTHUP HOUSE - FLASHBACK

86

It is years prior. The odyssey that awaits Solomon cannot even begin to even enter his mind. Solomon is with his family - Anne, Elizabeth, Margaret and Alonzo.

Solomon holds in his hand and up to the light of the window a SMALL, STAINED GLASS MEDALLION. Nothing too elaborate. Something a child would, and in fact has, made; a simple, colored flower. Five pedals surrounding a flower head. As light passes through the stained glass the colors resemble those of the previous scene. Though, at this moment, as he marvels at the gift from Elizabeth, there is much joy in his heart.

SOLOMON

You made it? Yourself?

ELIZABETH

Nearly so.

ANNE

She had a little help around the fire. Nothing more.

ALONZO

It's rather plain.

ANNE

Hush! It's beautiful.

SOLOMON

Precious. It is precious.

MARGARET

May I wear it?

ELIZABETH

It's for father!

ALONZO

I can play the drum.

SOLOMON

A brief exhibition around Margaret's neck before I reclaim it.

As Solomon fastens the medallion around Margaret's neck, Alonzo takes up a small drum and begins to beat it mercilessly as he runs around the room. Margaret strokes the medallion and smiles.

ALONZO

Do you like my drumming?

ANNE

I believe we have raised a master
of fortissimo.

MARGARET

I adore it. Will you fashion one
for me?

ANNE

For me as well.

ELIZABETH

Come, Margaret. Into the light.

Elizabeth beckons Margaret closer to the window, Elizabeth holding up the medallion to the light. Anne remains close to Solomon as he stares at the light coming from the pendant.

OVER THIS WE HEAR an emotional supplication from Solomon:

SOLOMON (V.O.)

Lord -- Have I not always been
faithful? Did I not put you above
all else?

87 INT. HOSPITAL - PATIENTS ROOM - CONTINUOUS

87

We have returned from the flashback. Solomon remains in bed, looking far worse than just previously. Though his lips move barely if at all, we hear the payer coming from him.

SOLOMON

Did I not believe my gifts were of
your grace and not my creation? I
have always been faithful, Lord. I
ask you reward my devotion. I beg
of you only one thing: I pray you
end the suffering. Death is better
than all that waits. Take me, Lord
-- Take my life. Lord -- Lord?

88 BLACK

88

89 INT. HOSPITAL - RECOVERY WARD - LATER

89

We are in a recovery ward in the hospital. Really, not much different than the sick ward, other than the fact that these PATIENTS have survived the illness and are going to live. We see Solomon sitting up in bed.

As with all the other patients, his pustules have abated, but they have left his face and body scarred. HE WILL REMAIN THIS WAY FOR THE REST OF HIS LIFE. Yet one more physical reminder of all that he's been through even at this relatively short stage of his enslavement.

As he sits, the door of the ward opens. Eliza is walked in and ushered over to a bed. She, too, has obviously survived the ordeal. But also, as with Solomon, she is now scared as well.

Along with having lost a child, her illness seems to have had a substantial negative effect on not just her physical health, but Eliza's mental health as well.

For a moment Solomon and Eliza just sit among the other recovering patients, waiting for what is to come next.

90 **BLACK**

90

91 **EXT. FREEMAN'S - GREAT ROOM - DAY**

91

We are back in Freeman's great room. It is almost as if the intervening never happened. The slaves are again on display. Bob, again, playing the fiddle as the BUYERS move among the prospective sales; a jumble of question and conversations which Freeman fields.

Among the buys we see WILLIAM FORD; a good-looking man, who has appeared to have reached the middle age of life.

There is something cheerful and attractive in his face and tone of voice.

FORD

What is the price for the ones
Harry, Platt and Eliza?

FREEMAN

Nine Hundred for Harry, a thousand
for Platt; he is a nigger of
talent. Seven hundred for Eliza. My
fairest price, sir.

FORD

You will exchange a note?

FREEMAN

As always, from you, Mr. Ford.

Eliza, pulling Emily forward and putting her on urgent display:

ELIZA

Sir -- Sir, she is my baby.

Stepping in, attempting to explain things.

SOLOMON

Sir, she watched as her only boy was sold off. If there is any way in your heart--

FREEMAN

You will be quiet.

SOLOMON

To not separate them further, sir. The Lord almost took her with disease. If he would not separate Mother and Child, are any of us to do more?

FORD

What is her price?

FREEMAN

(spitefully)

I won't sell the girl.

FORD

And you have no need for her. One so young will bring you no profit.

FREEMAN

Theys heaps 'n piles of money to be made of her. She is a beauty. One of the regular bloods, none of your thick-lipped, bullet heated, cotton picking niggers.

FORD

Her child, man. For God's sake, are you not sentimental in the least?

FREEMAN

My sentimentality stretches to the length of a coin. Do you want the lot, Mr. Ford, or do you pass on 'em all?

FORD

I will take them.

Eliza grips Emily tight.

ELIZA

I will not go without her. You will
not take her from me.

AS if to prove her wrong, Freeman puts a foot to Eliza and
harshly kicks her away from Eliza.

ELIZA
Please, don't. No!

Freeman, to Bob:

FREEMAN
Take her out of here.

Bob begins to pull Eliza away toward the door of the room,
but her screaming and pleading do not abate. IT IS CLEARLY
UNSETTLING TO THE OTHER BUYERS.

FREEMAN
Keep her quiet.

Bob tries to muzzle her with his hand, but Eliza continues to
scream for her child as Emily does for her mother.

EMILY
There is no need.

FREEMAN
(to Solomon)
Play something! Get the fiddle and
play.

As ordered, Solomon takes up Bob's fiddle and begins to play
lightly.

FREEMAN
Play!

Solomon begins to play harder and louder. Still, it is barely
enough to drown out Eliza's cries. Freeman gets the other
slaves to clap along with Solomon's playing.

FREEMAN
Goddamn it, Bob, yah keep her quiet
or it's yer damned hide I will take
it out of!

Bob pulls a rag, stuffs it in Eliza's mouth. Clamping both
hands over her mouth, he hauls Eliza from the room by the
head. It is an ugly, ugly scene.

Driven in a horse drawn wagon by Ford is the group of Solomon, John and Eliza. Eliza is sullen to say the least. With the loss of her two children she has dropped into a depression she will not be able to pull out of.

They arrive to the FORD PLANTATION. The main house of the plantation, the GREAT HOUSE as they are commonly called is sizable. Two stories high with a piazza in front. In the rear are also a log kitchen, poultry house, corn cribs and several slave cabins. The plantation is described as "a green spot in the wilderness."

With the arrival of Master Ford there is a flurry of activity the "excitement" of a new delivery as a "yellow girl," ROSE announces his return. Present with Rose is her husband, a slave named WALTON. Rose calls to her Mistress - MISTRESS FORD.

ROSE

Mistress! Mistress, they arrivn'.

Mistress Ford EXITS the house and travels to her husband, kisses him, then laughingly inquires:

MRS. FORD

Did you bring those niggers? Three of them? You got three?
(calling off:)
Sally!

FORD

Make me something to eat, dear. The day has taken it from me.

MRS. FORD

Rose, fetch Sally.

ROSE

Yes, ma'am.

MRS. FORD

Tell her there are three new niggers.

ROSE

Yes, ma'am.
(calling off)
Sally!

MRS. FORD

Do not yell for her. Run fetch her.

Rose runs off to fetch Sally. Mrs. Ford turns her attention to the new arrivals.

MRS. FORD

Let me get a look at them -- Do they have any skills? What do they do?

Indicating to Solomon and John:

FORD

Walton, tomorrow you will take these two up to the mill and start them workin'.

WALTON

Yeh, suh.

MRS. FORD

(re: Eliza)

This one's cryin'. Why is this one cryin'?

FORD

Separated from her child.

MRS. FORD

Oh, dear.

FORD

It couldn't be helped.

Moving with alacrity, Rose returns with SALLY; another female slave.

SALLY

Suh?

FORD

Sally, take these new niggers around to your cabin. Fix them a meal, and have them rest themselves.

SALLY

Yeh, suh, Massa Ford.

(to the slaves:)

C'mon, now. C'mon. Don't dawdle.

93 EXT. FORD PLANTATION - SALLY'S CABIN - MOMENTS LATER

93

The group rounds the house to Sally's cabin. There are TWO YOUNG CHILDREN naked, having been in the middle of getting washed playing in the grass.

As the group arrives, the kids jump up and toddle toward them, look at them "as though they were a brace of rabbits," then run off.

94 INT. FORD PLANTATION - SALLY'S CABIN - CONTINUOUS

94

Sally conducts the group into her cabin. As they enter, Sally instructs:

SALLY

Lay down your bundles. Seat
yourselves. Rest while yah can.
Tomorrow'll be work. Ya'll work
everyday 'cept fer the Sabbath.
Still, it's up in the mornin'.
Massa Ford read us the scripture
'fo we's left ta ourselves.

Just then JOHN, a young slave of about sixteen years of age comes RUNNING IN. He looks steadily in the faces of the newly arrived slaves, then turns and runs back out without saying a word. He does however LAUGH LOUDLY as if their arrival was a great joke.

95 EXT. WOODS - DAY

95

We are in a wooded area. There is A GANG OF SLAVES chopping trees into timber. It is hard, laborious work made no more easy by the sweltering heat. Solomon and John are chief among them, but also present are two slaves in particular; SAM and HARRY as well as Walton who's basically in charge of the group.

96 EXT. WOODS - LATER

96

The slaves now load the timber onto a horse drawn wagon.

Again, hard work done under the ever present sun.

97 EXT. ROAD - LATER

97

As Walton drives the wagon, the other slaves trudge along side by foot. We should get the sense the travel is long and tedious.

98 EXT. FORD'S MILL - LATER

98

It is a sizable mill on the edge of Indian Creek. There is much work being done, the slaves primarily employed in piling the timber and chopping it into lumber. As before, there is little doubt about the rigors of the job at hand.

At the mill the slaves are overseen by ADAM TAYDEM.

Working as a carpenter at the mill is JOHN TIBEATS.

There are also various CUSTOMERS who move about placing orders.

99 EXT. FORD PLANTATION - DAY

99

It's Sunday morning. All of Ford's slaves are dressed with their "finest" clothes - brightly colored and as free as possible of defect. The slaves are gathered on the lawn just beyond the piazza. Mistress Ford is present as well. As the slaves listen, Ford reads to them Scripture. His tone is of a man trying to preach by way of compassion.

FORD

"But as touching the resurrection of the dead, have ye not read that which was spoken unto you by God, saying, I am the God of Abraham, and the God of Isaac, and the God of Jacob. God is not the God of the dead, but of the living. And when the multitude heard this, they were astonished at his doctrine. But when the Pharisees had heard that he had put the Sadducees to silence, they were gathered together. Then one of them, which was a lawyer, asked him a question, tempting him, and saying, Master, which is the great commandment in the law? Jesus said unto him, Thou shalt love the Lord thy God with all thy heart, and with all thy soul, and with all thy mind. This is the first and great commandment. And the second is like unto it, thou shalt love thy neighbor as thyself. On these two commandments hang all the law and the prophets."

Despite the lightness with which Ford speaks and the hope in his words, Eliza sits off to the side self-secluded a bit weeping gently.

We should be able to see in Mistress Ford's eyes that Eliza's constant crying is unsettling.

100 EXT. WOODS - DAY

100

Again we see Walton's gang of slaves working in the woods, turning the trees into timber. As before, it is hot and hard work.

101 EXT. ROAD - LATER

101

And once again we see the slaves make the tedious trek from the woods to the mill.

102 EXT. FORD'S MILL - DAY

102

The slaves now work at unloading the timber. Though they work hard, it is not nearly hard enough for Taydem.

TAYDEM

Move. Move damn it. Yah wastin' daylight.

FORD

Mind your tone, Adam.

TAYDEM

Suh --

103 EXT. FORD PLANTATION - SALLY'S CABIN - NIGHT

103

Solomon is grinding corn along with Sally. Sally's two children are present. Rose knits Emily's hair. From time to time, Solomon pops little bits of corn toward the children and they attempt to catch it in their mouths.

When they do, they squeal with delight.

As the children laugh, a still clearly heartbroken Eliza says wistfully:

ELIZA

I think Emily had a very good day today. Very happy. I know Randall is well; a stout boy.

She begins to weep. Thoughts of her children too heavy to bear. Giving her warning:

SALLY

Yah need to stop wit yer carryin;
 on. Yah jus' upset the Mistress.
 Yer chilr'n gone. Ain't no
 otherwise. And ain't nuthin' ta do
 but 'cept it.

Sally's frankness does nothing to ease Eliza's crying.

104 EXT. FORD'S MILL - DAY

104

The slaves have broken for lunch. They snack on smoked meat and drink water from gourds. As they lunch Solomon reads from Sam's Bible to the other slaves.

SOLOMON

But ye shall not be so: but he that
 is greatest among you, let him be
 as the younger; and he that is
 chief, as he that doth serve. For
 whether is greater, he that sitteth
 at meat, or he that serveth? Is not
 he that sitteth at meat? But I am
 among you as he that serveth.

A WHITE CUSTOMER, irate at the sight and sound of slaves reading Scripture, crosses over. He grabs the Bible.

WHITE CUSTOMER

From where did you steal this?

SAM

Suh, the book is my property.

The White Customer has no interest in Sam's answer. With flailing hands he STARTS BEATING ON SAM. Solomon tries to stop him. That only makes the situation worse, Solomon now the target of the man's ire.

WHITE CUSTOMER

Take your filthy hands from me!

Ford comes running over.

FORD

What is the commotion?

WHITE CUSTOMER

Your niggers are either brazen or
 rebellious. This one was readin'
 aloud. Scripture, no less. This one
 claims it to be his.

FORD

It is. A gift from his Mistress.

WHITE CUSTOMER
You condone this?

FORD
I encourage it. As a Christian I
can do no less.

WHITE CUSTOMER
Any man who would allow his slaves
to have a Bible is not fit to own a
nigger. And any man who would allow
a slave to read is dangerous.

The Customer huffs off. Handing the book back to Sam, very
matter of fact:

FORD
Pay him no mind. There will always
be men who don't understand the
nature of God, nor His compassion.
But the word of God applies to all,
whites and niggers alike. In that
you may take comfort.

105 EXT. FORD PLANTATION - DAY

105

Eliza is being ridden off in a cart driven by Tibeats.

Watching her depart are Master and Mistress Ford, Rose,
Sally, Walton and Solomon.

Ford heads back into the house without a word. The Mistress
turns to the other slaves and states plainly:

MRS. FORD
It's for the best. She weeps
constantly, more occupied in
broodin' over her sorrows than in
attendin' to her business. I cannot
have that kind of depression about.
...It's for the best.

106 EXT. WOODS - DAY

106

Again, we see the gang of slaves working hard at cutting down
the wood.

107 EXT. ROAD - DAY

107

Walton is at the reigns of the wagon carrying the timber to Ford's mill. Slaves trudge alongside, same as it ever was. Only -- it's not quite the same. Walton brings the wagon to a halt. He, and the slaves look up the road ahead of them.

Standing in the middle of the road is a group of CHICKASAWS INDIANS. They are in their "usual" dress of buckskin breeches and calico hunting shirts of fantastic colors, buttoned from belt to chin. They have with them DOGS and HORSES. They carry with them the carcass of a deer.

The two groups stare at each other for a long moment.

108 EXT. FIELD - LATER

108

The groups of slaves and Chickasaws are now intermingled.

They "break bread" - actually they work on the carcass of the deer which is now roasting over a large fire. As well the group share a smoke on a pipe.

One of the Chickasaws is playing a tune on an "INDIAN FIDDLE." The Chickasaws perform a customary dance; trotting after each other, and giving utterance to a guttural, sing-song noise.

The slaves enjoy the respite from work, Solomon particularly taken by the music -- if not entirely enthralled by it.

After a bit, Solomon rights himself and heads from the group.

109 EXT. RIVER BANK - CONTINUOUS

109

Solomon arrives to some tall grass at the edge of the river. Lowering his trousers, SOLOMON SQUATS TO DEFECATE. As he does, he stares out toward the flowing waters of Indian Creek. After a few moments, as though a thought far greater than relieving himself has come to him, Solomon stands and replaces his pants. He goes out to the water. Taking a reed he throws it into the creek and watches it float upstream.

Then, as though he were a man possessed, Solomon wades out into the water. Stands in the heart of it as it flows around him.

110 EXT. FORD'S MILL - DAY

110

Just beyond the mill Solomon speaks with Ford as Taydem listens. Solomon is drawing in the dirt, making rough diagrams for Ford as he explains himself.

SOLOMON

The creek is plenty deep enough to sail, even with a boat full of load. The distance from the mill to the point on the latter bayou is several miles by water fewer than land. It occurs to me that the expense of the transportation would be materially diminished--

TAYDEM

"Materially diminished?"

SOLOMON

If we use the waterway.

TAYDEM

It's a scheme, Ford. Visionary, but a scheme. Plenty of engineers have schemed similarly. The passes are too narrow.

SOLOMON

I reckon them at more than twelve feet at their most narrow. Wide enough for a tub to traverse. Appears narrower to the eye; mostly obstructed by tree trunks. A team of niggers can clear it out.

TAYDEM

And you know what of transport and terra formin'?

SOLOMON

I labored repairing the Champlain canal, on the section over which William Van Nortwick was superintendent. With my earnings I hired several efficient hands to assist me, and I entered into contracts for the transportation of large rafts of timber from Lake Champlain to Troy. During the season I became perfectly familiar with the art and mysteries of rafting.

FORD

(drily witty)

Pity his qualifications exceed the work at hand -- But I supposes it's worthy of a try.

TAYDEM
A waste of effort.

FORD
It's Platt's effort to waste.
(to Solomon)
Get a team. Let's see what you can
do.

111 EXT. CREEK - DAY

111

WE HAVE A SERIES OF SCENES in which we see Solomon and a TEAM OF BLACKS working on the creek: CHOPPING TREES ALONG THE BANKS, widening out the shore -- It's all just a trial for now.

The work is diligent, but it is basic to this point. Still, under Solomon's direction, the slaves go at it like they've got something to prove. And rightly they do.

Solomon also works on a narrow raft of twelve cribs with which he will transport the timber.

Once this is constructed, HE PERSONALLY "SAILS" THEM UP THE CREEK WITH A TEST LOAD.

112 EXT. FORD'S MILL - LATER

112

Ford and a group of slaves wait along the river banks just beyond the mill. All are expectant in their manner.

A long moment passes with no sign of Solomon.

Then, from up river, we see Solomon's raft of lumber winding its way. SLAVES CHEER, and Ford literally applauds the effort. Taydem looks pissed. He has just been shown up after all. TIBEATS IS THERE AS WELL. HE SHARES TAYDEM'S BITTERNESS.

113 INT. FORD PLANTATION - GREAT HOUSE - DAY

113

As we come into the scene, Ford is presenting Solomon with a fiddle. Not as grand as the one he previously owned in New York, but a fine instrument nonetheless.

It is a gift of thanks for his hard work. Solomon's gratitude is easily expressed.

SOLOMON
My great thanks, Master Ford.

FORD

My thanks to you, and it is the least of it. My hope is that it brings us both much joy over the years.

Following the statement, Solomon's not sure how to react.

He remains grateful, but the thought of "over the years" is just a reminder of the altered state in which he now finds himself.

114 EXT. FORD PLANTATION - DAY

114

It's Sunday. The slaves are again gathered to hear the word of the Lord as read by Master Ford.

FORD

At the same time came the disciples unto Jesus, saying, Who is the greatest in the kingdom of heaven? And Jesus called a little child unto him, and set him in the midst of them, And said, Verily I say unto you, Except ye be converted, and become as little children, ye shall not enter into the kingdom of heaven. Whosoever therefore shall humble himself as this little child, the same is greatest in the kingdom of heaven. And whoso shall receive one such little child in my name receiveth me. But whoso shall offend one of these little ones which believe in me, it were better for him that a millstone were hanged about his neck, and that he were drowned in the depth of the sea. Woe unto the world because of offences! For it must needs be that offences come; but woe to that man by whom the offence cometh!

115 BLACK

115

116 EXT. FORD PLANTATION - DAY

116

Seasons have passed. It is winter now, and very grey out along the bayou. Ford and Tibeats who we have seen working around the mill stand with Solomon, Tibeats giving Solomon an inspection. Ford carries much lament.

FORD

He's a good carpenter and a smart nigger.

TIBEATS

I'm familiar with his cleverness.
Turn around. Raise yer shirt.

Solomon does as instructed. Tibeats looks at Solomon's back, at the scars from lashings he bears.

TIBEATS

Troublesome.

FORD

Quite the opposite. Trustworthy to the highest degree. A jack-of-all trades. No chore too menial nor skill too complicated. Plays the fiddle as well.

TIBEATS

Look like he got airs.

FORD

You won't find a nigger more humble.

TIBEATS

Ain't found a nigger yet I cain't humble.

Tibeats heads off. Solomon, highly curious over the preceding. WHEN FORD RESPONDS, IT IS WITH GREAT HUMILIATION.

SOLOMON

Sir, did I do something wrong?

FORD

Not your concern, Platt. I say with much -- shame I have compiled debts. I have long preached austerity, but find myself hypocritical in that regard. You'll be in the ownership of Mr. Tibeats. You are his now. But he himself is in the employ of my sister and her husband, their plantation is across the Bayou from my own. There is much building to be done, and you'll be of great use to them. Serve him as you'd serve me.

SOLOMON

Yes, sir.

FORD

And your faithfulness will not be forgotten. If I can ever be of aid, you need but send word.

SOLOMON

Yes, sir.

FORD

Pride and want have been my sin. Loss of you is but one of my punishments.

117 EXT. ROAD - DAY

117

In a wagon driven by Tibeats, Solomon rides along with Sam and Harry. They travel up Bayou Boeuf.

118 EXT. TANNER PLANTATION - LATER

118

The Solomon arrives on wagon with Tibeats to the Tanner Plantation. As the wagon comes to a stop, Tibeats orders the slaves:

TIBEATS

Gather up your wares, but don't wander about until I make space for you.

Tibeats retreats to do just that. He converses with CHAPIN who is the overseer on the plantation.

As he waits, Solomon sees a figure in the near distances pulling up dead plants from the yard. The person is just far enough away Solomon can't clearly make out who it is.

Recognition gradually comes to him. He yells to the person.

SOLOMON

Eliza --

The figure looks up. It is Eliza. She makes the LONG TRAVEL over to Solomon, moving slowly at a somnambulistic pace. As she nears, Solomon can see that Eliza looks weary and gaunt. She has grown feeble and emaciated, and is still in mourning for her children. There is no awareness in her eyes.

SOLOMON

It's Platt. It's Platt, Eliza.

A moment before Eliza, her faculties clearly slipping, recognizes Solomon. A bit, just a bit, of life and light return to her.

ELIZA

Platt? You knew my babies.

SOLOMON

I did.

ELIZA

Do you recollect how handsome little Emily was? And Randall -- Do you recall how he loved me more than anything?

SOLOMON

He did.

ELIZA

I wonder if they are still living. I think they are still alive. A child would perish without their mother, a lesser child. But mine are too hearty. Would you say so?

SOLOMON

I would --

ELIZA

You've seen what strong constitutions they have.

SOLOMON

As vital and healthy as any children I've ever seen. They endure, and they would want the same of their mother. They would want her to--

ELIZA

Where are they? You say they endure, you say that they--

SOLOMON

Eliza--

ELIZA

Then where are my children?

Having returned, Tibbeats calls to Solomon. His displeasure in having to do such obvious in his tone:

TIBBEATS

Platt!

SOLOMON

I must go.

Solomon turns to head away. Eliza grabs him by the arm, and holds him fast as she becomes a bit crazed.

ELIZA

You know where they are. Where?

SOLOMON

Eliza, unhand me.

TIBEATS

Damn it, Platt!

Tibeats moves toward Solomon and Eliza. His fist is curled to do work.

ELIZA

You know, tell me. Tell me where they are!

Arriving to the pair, Tibeats wastes no time in throwing a quick but severe beating on Eliza. Done with that, he strikes Solomon hard across the face. Chapin intervenes.

CHAPIN

Tibeats. Enough. Your meaning is clear.

TIBEATS

Sweat, or stripes, nigger. You will bear sweat or you will wear stripes.

119 INT. TANNER PLANATION - SLAVE SHACK - NIGHT

119

Solomon talks with another of Tanner's slaves, LAWSON, and his wife BRISTOL. They dine on bacon and corn cake.

Eliza, all the while and same as always, is continually and gently weeping.

Bristol warns Solomon regarding Tibeats.

BRISTOL

Tibeats has got a streak to him.
 Cain't say where it come from;
 Drinks no mo' than most, take to da
 Bible -- That don't matter none to
 his disposition, and he don't give
 no warnin' for his moods neither.

LAWSON

Say this; massa hate a nigger that
 think for hisself. Do as told -
 yes, suh. No, suh - you'll do fine.

BRISTOL

But you show a spark of reasonin'
 behind yo eyes -- steel yourself
 for a lashin'.

SOLOMON

Ford wouldn't stand for him to give
 me such a beating.

BRISTOL

Not Massa Ford's no more. Yo time
 with him is o'er and done. And the
 Tanner's hain't never about. Put it
 out your head. Learn yourself ta be
 a proper nigger.

120 BLACK

120

121 EXT. TANNER PLANTATION - DAY

121

We see Solomon working as a carpenter. He is working to help
 erect a Weaving House that stands off to the side of the
 plantation's Great House.

At the moment Solomon is nailing on siding. Tibeats comes
 around and is immediately dissatisfied with this work.

TIBEATS

Make them boards flush.

SOLOMON

They are, sir.

TIBEATS

They is no such thing.

Solomon runs his hands over the boards.

SOLOMON

As smooth to the touch as a
yearling's coat.

TIBEATS

Callin' me a liar, boy?

Not caring for Solomon's tone, Epps's about ready to
physically correct him. But Solomon verbally dodges.

SOLOMON

Only a matter of perspective, sir.
From where you stand you may see
differently. But the hands are not
mistaken. I ask only that you
employ all your senses before
rendering judgement.

What's Tibeats to do when faced with fact? All he can do is
spew invectives.

TIBEATS

You are a brute. You are a dog, and
no better for followin'
instruction.

SOLOMON

I'll do as ordered, sir.

TIBEATS

Then you'll be up at daybreak. You
will procure a keg of nails from
Chapin and commence puttin' on
clapboards.

Tibeats wheels away.

122 EXT. TANNER PLANTATION - SLAVE SHACK - EVENING

122

The slaves eat. All tired from a days work they conduct
themselves in silence. All except for Eliza who as always
weeps. The sound of her sobbing edging him up, Solomon
finally snaps:

SOLOMON

Eliza. Eliza, stop!

He goes to her, grabs her.

SOLOMON

Stop your wailing. Your sorrow will
be the end of you.

She does not stop. As if to force the misery from her, Solomon strikes Eliza twice.

SOLOMON
Stop it! Stop!

Eliza does stop crying. But only just long enough to enquire:

ELIZA
Have you stopped crying for your children? You make no outward sounds, but inside you; do you still weep and wail? Before you drift at night, do you not wonder where they are and if they prosper -- Solomon? If you do not, then you assuredly have been reduced to the nigger they are desirous of -- Solomon.

This truth AND THE USE OF HIS TRUE NAME BY PATSEY strikes Solomon very directly. They may mourn differently, but he has not let go of his children.

123 EXT. TANNER PLANTATION - DAYBREAK

123

It is early, early morning. The sun just barely making its way over the horizon. Solomon is waiting on the piazza for Chapin to arrive. He does, and in good spirits.

CHAPIN
Platt? Good early morning.

Solomon removes his hat as he addresses Chapin.

SOLOMON
Sir, Master Tibeats had directed me to call upon you for a keg of nails.

124 EXT. STOREHOUSE - MOMENTS LATER

124

Chapin is rolling out a keg of nails for Solomon.

CHAPIN
If Tibeats prefers a different size, I will endeavor to furnish them, but you may use those until further directed.

Chapin mounts a nearby horse. As he rides off into the field where slaves are already at work:

CHAPIN

Good morning to you, Platt.

Left alone, Solomon shoulders the keg and begins to carry it off.

125 EXT. WEAVING HOUSE - LATER

125

IN A SERIES OF CUTS, we see Solomon breaking the head on the keg, and begin going to work nailing the clapboards onto the house. He is as diligent as ever.

126 EXT. WEAVING HOUSE - LATER

126

As the day gets on to mid-morning, the sun already baking in the sky, Tibeats makes his way over to Solomon.

Before even arriving to Solomon, his mein is one of belligerence; out of sorts and something less than sober.

TIBEATS

I thought I told yah to commence
puttin' on clapboards this morn'.

SOLOMON

Yes, master. I am about it. I have
begun on the other side of the
house.

Tibeats walks around to look over Solomon's work. He is picayune, as if purposefully looking for fault.

TIBEATS

Didn't I tell yah last night to get
a keg of nails of Chapin?

SOLOMON

Yes, master, and so I did; and
Chapin said he would get another
size for you, if you wanted them
when he came back from the field.

Tibeats walks to the keg and kicks it. Moving toward Solomon
"with a great passion:"

TIBEATS

Goddamn yah! I thought yah knowed
something!

Solomon, perhaps inspired by his moment with Eliza, is in no mood for Chapin.

SOLOMON

I did as instructed. If there's something wrong, then its wrong with your instructions.

TIBEATS

Yah black bastard! Yah goddman black bastard!

In an inconsolable rage, Tibeats runs off to the piazza to fetch a whip.

Solomon looks around. He is alone other than RACHEL the cook and CHAPIN'S WIFE who, shocked by that which she witnesses, runs out to the field to fetch Chapin.

Solomon's instinct is to run, but he stands his ground as Tibeats marches back whip in hand.

TIBEATS

Strip yer clothes!

Solomon does no such thing.

TIBEATS

Strip!

SOLOMON

I will not.

With "concentrated vengeance," Tibeats springs for Solomon, seizing him by the throat with one hand and raising the whip with the other. Before he can strike the blow, however, Solomon catches Tibeats by the collar of his coat and pulls him in close. Reaching down, Solomon grabs Tibeats by the ankle and pushes him back with the other hand. Tibeats tumbles to the ground. A violent struggle takes place as Solomon puts a foot to Tibeats throat, and then in a frenzy of madness snatches the whip from Tibeats and begins to strike him with the handle again and again and again.

TIBEATS

Yew will not live ta see another day nigger! This is yer last, I swear it!

Solomon ignores the threats, continues to beat Tibeats.

Blow after blow falling fast and heavy on Tibeats's wriggling form. The stiff stock of the whip wraps around Tibeats's cringing body until Solomon's arm aches.

Tibeats's cries of vengeance turn to yelps for help and then pleas for mercy:

TIBEATS

Murder! It's murder! Lord, God,
help me. God be merciful!

Chapin comes riding in from the field fast and hard.

Solomon strikes Tibeats a blow or two more, then delivers a well-directed kick that sends Tibeats rolling over the ground.

CHAPIN

What is the matter?

Tibeats struggles up and tries to present an air of dignity and control while he keeps a demonic eye on Solomon:

SOLOMON

Master Tibeats wants to whip me for
using the nails you gave me.

CHAPIN

What's the matter with the nails?

TIBEATS

They're -- they're too large.

CHAPIN

I am overseer here. I told Platt to
take them and use them, and if they
were not of the proper size I would
get others on returning from the
field. It is not his fault.
Besides, I shall furnish such nails
as I please. Do you understand
that, Mr. Tibeats?

Tibeats answer is in the grinding of his teeth and the shaking of his fist.

TIBEATS

This ain't half over. I will have
my satisfaction.

Tibeats moves off toward the house. Chapin follows. A long moment, Solomon stands alone. He looks around, not sure what to do; to stay or to flee. Anxiety mounts on his features.

A moment more, and Tibeats exits the house. He saddles his horse and rides off to beat the devil. Or, worse, to fetch him.

Chapin comes running back out of the house. He is visibly excited, and when he speaks he is quite earnest.

Though he tries to project reasoned emotions he gives off an air of impending trouble.

CHAPIN

Do not stir. Do not attempt to leave the plantation on any account whatever. Your master is a rascal, and has left on no good errand. But if you run there is no protecting you.

SOLOMON

Sir--

CHAPIN

If you run, Platt, there is no protecting you. Rachel!

Chapin runs off to join Rachel. The two converse at a distance from Solomon, then they head off for the log kitchen.

Solomon is now very much alone, and he waits for what is to come. AND WE WAIT WITH HIM. And we wait, and we continue to wait -- Moment by moment, the dread of the unexpected mount.

Solomon's eyes begin to well. He has beaten a white man, and he knows that death awaits him.

A SLIGHT PAYER TO THE HEAVENS BEGINS TO FORM IN HIS THROAT, but he is too choked up to fully speak it.

Chapin has now returned to the piazza. He stands and watches, but does not move to Solomon.

Solomon waits, and waits --

WE HEAR THE SOUND OF DISTANT HOOFS which grow louder and louder in the manner of rolling thunder. It's Tibeats.

He returns with two accomplices; COOK and RAMSAY. They carry with them large whips and a coil of rope.

Dismounting, they move with menace that is tinged with perverse pleasure. Tibeats orders:

TIBEATS

Cross your hands.

(beat)

You resist, I swear I will break your head and cut your black throat. Cross your hands!

Solomon does as ordered. He's tied by Cook and Ramsay - his wrists, and then ankles bound in the same manner. In the meantime the other two have slipped a cord within Solomon's elbows, running it across his back and tying it firmly. Solomon is then dragged toward a peach tree. A lynching is in store. The naked horror of it intensely palpable.

Solomon looks toward the piazza, but Chapin is now gone.

Tears of fear flow down Solomon's cheeks. He is on the verge of panic; a man heading toward his own execution, he begins to struggle and fight. Cook and Ramsay almost relish this; an opportunity to inflict hurt on Solomon.

A rope goes around Solomon's neck, then is tossed over the branch of the tree. The trio begin to hoist Solomon.

He gasps and gags as spittle flies from his mouth and the life is choked from him.

With suddenness, Chapin comes from the house brandishing a pistol in each hand - Colt Paterson .36 caliber

"Holster" pistols with 9" barrels. Chapin moves with determination toward the lynch mob. He is sharp and matter of fact. With the guns in hand, he really doesn't need to be much more demonstrative.

CHAPIN

Gentlemen -- Whoever moves that slave another foot from where he stands is a dead man. Tibeats, you are a scoundrel, and I know it. You richly deserved the flogging you have received. I have been overseer of this plantation seven years, and in the absence of William Ford, am master here. My duty is to protect his interests. Ford holds a mortgage on Platt of four hundred dollars. If you hang him, he loses his debt. Until that is canceled you have no right to take his life.

Directing his attention to Cook and Ramsay:

CHAPIN

As for you two, begone. If you have any regard for your own safety -- I say, begone!

Cook and Ramsay don't need to be told twice. The pistols Chapin's gripping make the situation real clear. Without further word, they mount their horses and ride away.

Tibeats remains, and his anger with him.

TIBEATS

Yah got no cause. Platt is mine,
and mine ta do with as I please.
Yah touch my property, I will 'ave
yah strung up as well.

Tibeats mounts up and departs. There is a surreal moment as Chapin's not sure what to do about Solomon. He chooses to do nothing. Solomon is left dangling by the neck from the tree as Chapin calls to Rachel:

CHAPIN

Run to the field. Fetch Lawson,
hurry him here and bring the brown
mule with him.

Rachel runs off. A FEW MOMENTS, then LAWSON comes running with the mule. Chapin, with much urgency:

CHAPIN

You must ride to Master Ford. Tell
him to come here at once without a
single moment's delay. Tell him
they are trying to murder Platt.
Hurry, boy. Bring him back if you
must kill the mule to do so!

Lawson mounts up and rides off, the mule demonstrating much speed.

127 EXT. TANNER PLANTATION - LATER

127

HOURS HAVE PASSED. The sun is now at its apex. Solomon remains tied and dangling exactly where he was left.

Despite this odd and horrific sight, life on the plantation continues. The OTHER SLAVES work in the field. CHILDREN make their way playfully in the yard.

It should all underscore the fact that a black, hanging even partially from a tree, is nothing unusual in this time and space.

Chapin walks back and forth with the pistols in his hands. Clearly he fears Tibeats returning with more and better assistance. And yet, he does nothing to alleviate Solomon's suffering. He heeds Tibeats words, and as though caught up in the middle of nothing more than a property dispute, he offers no further aid.

128 EXT. TANNER PLANTATION - LATER**128**

Solomon continues to hang. By now he is drenched in sweat, and nearly delirious with dehydration. His lips dry and parched. He may not die from hanging, but he may very well expire before the day is over.

Eventually Rachel comes over timidly, and as though she were acting contrary to orders and offers a drink of water from a tin cup, pouring it in Solomon's mouth for him. She then takes a small hand towel and dabs at the water which clings to his lips.

She then retreats, and leaves Solomon to hang.

129 EXT. TANNER PLANTATION - EVENING**129**

The sun is just now arching for the horizon. Solomon remains, as though his torture will not end. Ford, trailed by the slave Lawson, finally comes riding up. He dismounts, and moves swiftly over to Solomon. With great heartache:

FORD

Platt -- My poor Platt.

Ford produces a blade and cuts Solomon loose. Solomon attempts to carry himself, but he cannot. He falls to the ground and passes out.

130 INT. TANNER PLANTATION - GREAT HOUSE - NIGHT**130**

As we come into the scene, Solomon lays on a blanket on the floor. Eventually, his eyes flutter, then open. He is in the foyer of the Tanner house. As he gets his bearings, he looks around the interior. THE SPACE IS HANDSOME, AND WELL DECORATED.

It is sharp contrast to the bleak surroundings, shacks and dungeons Solomon has largely been accustomed to during his time of slavery. It will be the "first and last time such a sumptuous resting place was granted" during his twelve years of bondage.

Solomon doesn't have much chance to luxuriate in his surroundings. He hears a DOG BARKING just outside, and is unnerved. Has Tibeats returned to finish what he started?

From a study, Master Ford appears with a gun in hand. He goes to the door, opens it and looks outside. He can see nothing. Satisfied, Ford crosses back over to Solomon.

He is frank with Solomon regarding the situation.

FORD

I believe Tibeats is skulkin' about the premises somewhere, too cowardly to show himself for a proper confrontation. He will in time. Tibeats wants you dead, and he will attempt to have you so. It's no longer safe for you here.

SOLOMON

Master Ford, I am willing to work. I will proceed with all my labors and more, but I beg that you take me from this hateful place.

FORD

I cannot protect you.

SOLOMON

Master, please --

FORD

And I don't believe you will remain passive if Tibeats attacks. To strike him again is to warrant your death from all corners. It is best for you to go. I have transferred my debt to Edwin Epps. He will take charge of you. He is a hard man. Prides himself on being a "nigger breaker." But truthfully I could find no others who would have you. You've made a reputation of yourself. A notorious one as a slave of both mind and will. You are an exceptional nigger, Platt. I fear no good will come of it.

131 BLACK

131

132 INT. MASTER EPPS'S PLANTATION - BARN - DAY

132

EDWIN EPPS is a large, portly, heavy-bodied man with light hair, high cheekbones and a Roman nose of extraordinary dimensions. He has blue eyes, a fair complexion and is full six feet high. His manners are repulsive and coarse, and his language gives speedy and unequivocal evidence that he has never enjoyed the advantages of an education.

He reads the Bible to his slaves, eight of them altogether. ABRAM; a tall, older slave of about sixty years. WILEY, who is forty eight. PHEBE, who is married to Wiley. BOB and HENRY who are Phebe's children, EDWARD and PATSEY. Patsey is young, just 23 years old -- though in the era, 23 not as young as in the present day. She is the offspring of a "Guinea nigger," brought over to Cuba in a slave ship. She nearly brims with unconversant sexuality.

MISTRESS EPPS, Epps's wife, is also present.

Though Epps reads the word of the Lord, he lacks the tone of compassion with which Ford read.

EPPS

"And that servant which knew his Lord's will -- WHICH KNEW HIS LORD'S WILL and prepared not himself -- PREPARED NOT HIMSELF, neither did according to his will, shall be beaten with many stripes" D'ye hear that? "Stripes." That nigger that don't take care, that don't obey his lord - that's his master - d'ye see? - that 'ere nigger shall be beaten with many stripes. Now, "many" signifies a great many. Forty, a hundred, a hundred and fifty lashes -- That's Scriptor!

133 EXT. MASTER EPPS'S PLANTATION - SLAVE CABIN - MORNING

133

The cabin is constructed of logs, without floor or window. The rude door hangs on great wooden hinges. In one end is constructed an awkward fireplace.

The sun has not yet even broken the horizon as a HORN IS BLOWN from the Great House. Slaves rise, clearly weary from their "joyful" night of dancing.

134 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

134

It is August, "cotton picking" season.

We are looking out over a cotton field in full bloom. It presents a visual purity, like an immaculate expanse of light, new-fallen snow. The cotton grows from five to seven feet high, each stalk having a great many branches shooting out in all directions and lapping each other above the water furrow.

There is a slave to each side of the row. They have a sack around their necks that hangs to the ground, the mouth of the sack about breast high. Baskets are placed at the end of the furrows. Slaves dump their sacks of cotton in the baskets, then pick until their sacks are again filled.

Solomon, as with the other slaves, is picking cotton. It is hard, harsh back breaking work. Clearly he's not "skilled" at the chore - he moves along slowly and does not pick with any particular dexterity.

Patsey, on the other hand, is the "queen of the field."

She moves through the rows at speed, expertly picking the cotton.

THE SOUNDTRACK TO THE SCENE IS NOTHING MORE THAN THE RUSTLE OF LABOR, THE MALE CICADAS BUGS "TYMBALS" IN THE HEAT and a SPIRITUAL SONG BY THE SLAVES.

Despite the heat, there is no stopping for water. The slaves are "driven" by Edward, who is himself "driven" by Treach.

TREACH

C'mon. Drive dem niggers.

Edward moves among the slaves, applying the whip to them without regard.

EDWARD

Pick dat cotton. Move along now, hear?

135 EXT. MASTER EPPS'S PLANTATION - GIN HOUSE - EVENING

135

The day's work is done. The slaves are now assembled in the gin house with their baskets of cotton which are being weighed by Treach. There is anxiety among the slave, the reason for which soon becomes apparent.

TREACH

Two hundred forty pounds for Bob.

EPPS

What yah got for James?

TREACH

Two hundred ninety five pounds.

EPPS

Tha's real good, boy. Tha's real good.

TREACH

One hundred eighty two pounds for Platt.

Epps does not look happy. Treach says again:

TREACH

One hundred eighty two.

EPPS

How much can even an average nigger pick a day?

TREACH

Two hundred pounds.

EPPS

This nigger ain't even average.

Epps pulls Solomon aside.

TREACH

Five hundred twelve pounds for Patsey.

EPPS

Five hundred twelve. Yah men folk got no shame lettin' Patsey out pick yah? The day ain't yet come she swung lower than five hundred pounds. Queen of the fields, she is.

TREACH

Two hundred six pou--

EPPS

I ain't done, Treach. Ain't I owed a minute to luxuriate on the work Patsey done?

TREACH

Sir --

EPPS

Damned Queen. Born and bred to the field. A nigger among niggers, and God give 'er to me. A lesson in the rewards of righteous livin'. All be observant ta that. All!

(beat)

Now, Treach. Now speak.

TREACH

One hundred thirty eight pounds for Phebe.

EPPS

Hit one forty five yesterday. Pull her out.

TREACH

Two hundred six pounds for Abram.

EPPS

How much he pick yesterday?

TREACH

Two hundred twenty nine pounds.

Abram is pulled from the line, huddled with Solomon.

136 EXT. MASTER EPPS'S PLANTATION - YARD - EVENING

136

A flogging is going on. Solomon, Phebe, and Abram are stripped and now being given a perfunctory whipping delivered by Epps.

137 EXT. MASTER EPPS'S PLANTATION - EVENING

137

Evening, but the day is not yet done. Slaves attend their various evening chores; feeding livestock, doing laundry, cooking food. There is no respite from a slave's charge.

138 INT. MASTER EPPS'S PLANTATION - SLAVE SHACK - NIGHT

138

A fire is kindled in the cabin. The slaves finally fix their own dinner of corn meal. Corn is ground in a small hand mill. The corn meal is mixed with a little water, placed in the fire and baked. When it is "done brown" the ashes are scraped off. Bacon is fried. The slaves eat.

As they eat, Abram goes on in great length and with much emotion about General Jackson.

UNCLE ABRAM

Hold my words: General Jackson will forever be immortalized. His bravery will be handed down to the last posterity. If ever there be a stain upon "raw militia," he done wiped away on the eighth of January. I say da result a that day's battle is of 'mo importance to our grand nation than any occurrence 'fo or since. Great man. Great man indeed. We all need pray to Heavenly Father da General reign over us always.

139 INT. MASTER EPPS'S PLANTATION - SLAVE SHACK - NIGHT

139

The slaves are sleeping. There is a loud commotion.

Epps enters, drunkenly, forcing the slaves awake.

EPPS

Get up! Get up, we dance tonight!
We will not waste the evenin' with
yer laziness. Get up.

140 INT. MASTER EPPS'S PLANTATION - MAIN HOUSE - NIGHT

140

Despite the lateness of the hour, the slaves are up and now fully dressed. They take up position in the middle of the floor. They wait, poised like actors.

Solomon strikes up a tune and the slaves dance. They do so very wearily. The whole of it certainly more torture than pleasure.

Epps, whip in hand:

EPPS

Where's yah merriment? Move yer
feet.

As the slaves twirl about Epps keeps an attentive eye on Patsey. It should be quite clear that his primary motivation for holding dances is so that he may view Patsey twirl about the floor.

This fact is not lost on the Mistress Epps. A few moments of Epps's lust on display is all that the Mistress can bear. Jealousy mounting, she snatches up a CARAFE. With all her might she throws it at Patsey. It hits Patsey square in the face.

TOO THICK TO SHATTER, IT LEAVES HER BLOODY AND WRITHING ON THE FLOOR. The dancing, the music stop. The slaves, however, react as though it is not the first time they've seen as much from the Mistress.

Mistress Epps, screaming like a hellion:

MISTRESS EPPS

Sell her!

EPPS

C'mon, now. Wha's this?

MISTRESS EPPS

You will sell the negress!

EPPS

You're talkin' foolish. Sell little Pats? She pick with more vigor than any other nigger! Choose another ta go.

MISTRESS EPPS

No other. Sell her!

EPPS

I will not!

MISTRESS EPPS

You will remove that black bitch from this property, 'er I'll take myself back to Cheneyville.

EPPS

Oh, the idleness of that yarn washes over me. Do not set yourself up against Patsey, my dear. That's a wager you will lose. Calm yerself. And settle for my affection, 'cause my affection you got. Or, go. 'Cause I will rid myself of yah well before I do away with her!

Mistress Epps stands irate, lost in fury and unable to even think of what to do. Eventually, optionless, she storms away.

For a few beats there is only the sound of Patsey sobbing.

EPPS

That damned woman! I won't have my mood spoiled. I will not. Dance!

Epps sends the whip in Solomon's direction. Solomon responds by playing.

Treach literally drags the prone Patsey from the floor, blood still spilling from her face. The slaves, as ordered, return to dancing.

141 EXT. MASTER EPPS'S PLANTATION - MORNING

141

The sun has only just risen above the horizon. FROM THE GREAT HOUSE THE HORN IS BLOWN signaling the start of another day.

142 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

142

Slaves are in the field picking cotton. They accompany their work with a SPIRITUAL.

143 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - LATER

143

As the slaves make their way in from the field, the Mistress calls to Solomon. SHE HAS A PIECE OF PAPER IN HAND.

MISTRESS EPPS

Platt --

SOLOMON

Yes, Mistress.

MISTRESS EPPS

Can you find your way to Bartholomew's?

SOLOMON

I can, ma'am.

Handing Solomon a sheet of paper.

MISTRESS EPPS

This is a list of goods and sundries. You will take it to be filled and return immediately. Tell Bartholomew to add it to our debt.

SOLOMON

I will, Mistress.

Solomon looks at the list. In a careless moment, Solomon reads quietly from it. He catches himself, but not before the Mistress notes his action. With high inquisitiveness:

MISTRESS EPPS

Where yah from, Platt?

SOLOMON
I have told you.

MISTRESS EPPS
Tell me again.

SOLOMON
Washington.

MISTRESS EPPS
Who were yah Master?

SOLOMON
Master name of Freeman.

MISTRESS EPPS
Was he a learned man?

SOLOMON
I suppose so.

MISTRESS EPPS
He learn yah ta read?

SOLOMON
A word here or there, but I have no understanding of the written text.

MISTRESS EPPS
Don't trouble yer self with it.
Same as the rest, Master bought yah to work. Tha's all. And any more'll earn yah a hun'red lashes.

Having delivered her cool advice, Mistress heads back into the house.

144 INT. BARTHOLOMEW'S - LATER

144

A general store in the township of Holmesville. Solomon stands at the counter as BARTHOLOMEW fills Mistress Epps's order. Among the items set before Solomon is a quantity of foolscap.

The items are collected for Solomon and placed in a sack.

Solomon giving little thought to them other than getting them back to the mistress.

145 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - LATER

145

Solomon returns and delivers the items to the Mistress.

MISTRESS EPPS
Any trouble?

SOLOMON
No, ma'am. No trouble.

146 EXT. ROAD - DAY

146

Solomon is running flat out along the road. Running as though his life depended on getting to his destination in beyond a timely manner.

147 EXT. SHAW'S PLANTATION - LATER

147

Still running, slick with sweat, Solomon comes upon the SHAW PLANTATION. It rivals that of Epps's in every way.

MASTER SHAW, A WHITE PLANTATION OWNER, IS ON THE LAWN GROOMING A HORSE.

Sitting on the plantation's Piazza, Patsey is having tea with MISTRESS HARRIET SHAW, WHO IS A BLACK WOMAN. Though once a slave, she is now comparatively refined though not wholly so. The table where they sit is adorned with white linens, and they are attended by a HOUSE NIGGER.

It makes for a bit of a surreal scene.

As Solomon arrives:

MASTER SHAW
Platt Epps, good Sunday morning.

SOLOMON
Good morning, Master Shaw. I've been sent by Master to retrieve Patsey. May I approach?

MASTER SHAW
You may.

Solomon makes his way over to the piazza.

SOLOMON
Excuse me, Mistress Shaw.

MISTRESS SHAW
Nigger Platt.

SOLOMON

My apologies. Patsey, Master wishes you to return.

PATSEY

Sabbath day. I's free ta roam.
Massa know where I be.

SOLOMON

Understood. But the Master sent me running to fetch you, and said no time should be wasted.

MISTRESS SHAW

Drink tea, Nigger Platt?

SOLOMON

Thank you, Mistress, but I don't dare.

MISTRESS SHAW

Would you knowed Massa Epps's consternation ta be any lessened wit your timely return? Anger be his constant condition. Sit, Nigger Platt. Sit and drink the tea that offered.

Solomon knows better, but he sits and the Mistress has tea poured for him.

MISTRESS SHAW

What'n was Epps's concern?

SOLOMON

I'd rather not say --

MISTRESS SHAW

L'il gossip on the Sabbath be fine.
All things in moderation.

Solomon is not sure what to say. He struggles to be as diplomatic as possible.

SOLOMON

As you are aware, Master Epps can be a man of a hard countenance. There are times when it is impossible to account for his logic. You know he has ill feelings toward your husband.

MISTRESS SHAW

He do.

SOLOMON

Master Epps has somehow come to believe, as incorrectly as it may be, that Master Shaw is... That he is something of a lothario and an unprincipled man. A misguided belief born out of their mutual competition as planters, no doubt.

MISTRESS SHAW

No doubt -- if not born outta truth itself.

The Mistress waves to Shaw. Shaw, unsuspecting of the conversation, waves back.

SOLOMON

I'm certain, with regard to Patsey's well being, Master Epps concern is only to mind what is his.

MISTRESS SHAW

Nothin' Epps desire come outta concern. It all outta jealousy.

SOLOMON

I meant no disrespect.

MISTRESS SHAW

He ain't heard you.

SOLOMON

I meant no disrespect to you, Mistress.

MISTRESS EPPS

Ha! You worry for me? Got no cause to worry for my senses. Nigger Epps, I ain't felt the end of a lash in 'mo years than I cain recall. Ain't worked a field, neither. Where one time I served, now I got others servin' me. The cost to my current existence be Massa Shaw broadcasting his affections. 'N me enjoining his pantomime of fidelity. If that what keep me from the cotton pickin' niggers, that what it be. A small and reasonable price to be paid 'fo sure.

Looking toward Patsey:

MISTRESS SHAW

I knowed what it like to be the object of Massa's predilections and peculiarities. And I knowed they can get expressed with kindness or wit violence. A lusty visit in the night, or a visitation from the whip. And wit my experience, if'n I can give comfort, then comfort I give. And you take comfort, Patsey; the Good Lord will manage Epps. In His own time the Good Lord will manage dem all. Yes, Lordy, there's a day comin' that will burn as an oven. May be sooner, or it may be later, but it comin' as sure as the Lord is just. When His will be done...the curse on the Pharos is a poor example of all that wait 'fo the plantation class.

As if to punctuate her thought, the Mistress takes a sip of her tea.

148 EXT. EPPS'S PLANTATION - LATER

148

Solomon and Patsey are returning from Shaw's. Waiting on the porch of the Great House, a drunk Epps beckons for Patsey to go to him. Aware of his lewd intentions, knowing what's waiting for her, Patsey begins to lightly cry.

PATSEY

Platt -- De old hog-jaw beckon.

SOLOMON

Do not look in his direction.
Continue on as though he's gone
unobserved by you.

Epps does not care to be ignored. He lifts himself and moves toward the pair in a rage.

EPPS

Patsey!

Solomon moves between Epps and Patsey, cutting Epps off as Patsey continues on. Playing up his "ignorance" of the situation:

SOLOMON

Found her, Master, and brought her
back just as instructed.

EPPS

What'd you tell her? What'd you say
to Pats?

SOLOMON

No words were spoken. None of
consequence.

EPPS

Lie! Damned liar! Saw you talkin'
with 'er jus now. Tell me!

SOLOMON

I cannot speak of what did not
occur.

Epps grabs Solomon.

EPPS

I'll cut your black throat.

Solomon pulls away from Epps, ripping his shirt in the process. Epps gives chase. Solomon begins to run around the cotton field, easily keeping his distance. Epps, however is undeterred. He moves after Solomon as speedily as he can, which isn't very speedily at all.

And quickly he tires. He's forced to bend over and suck air. Solomon maintains his distance, barely breathing hard. His breath returned to him, Epps starts up the chase again. Solomon runs on out of reach. Shortly, Epps again stops, gets his breath -- And now in what should be quite comical, Epps again runs after Solomon.

Again, Epps vigor leaves him before he can even get close to the slave.

Dropping down to the dirt, in a show of regret and piety:

EPPS

Platt -- Platt, liquor filled me. I
admit that it did, and I done over
reacted. It's the Lord's day. Ain't
nothin' Christian in us carryin' on
like this. Help me ta my feet, and
let us both pray forgiveness.

Epps extends a hand to Solomon. Cautiously, Solomon moves close, but not too close. As Solomon draws within striking distance, Epps lunges for him. He chases Solomon on until he is again out of breath and once more drops down. And again offering a treaty:

EPPS

Platt -- Platt, I'm all done in. I
have met my limitations, and I
ain't equal to 'em. I concede to
yah, but in the name of valor, help
yer master to his feet.

Solomon cautiously moves closer to help. Again he is attacked
by Epps this time by knife. Sort of. Epps is too drunk and
tired to fully open the blade and chased far around the field
by Epps. ALL OF THE PRECEDING SHOULD BE MORE FUNNY THAN
SHOCKING. A CHANGE OF PACE FROM THE OTHERWISE NECESSARY
BLEAKNESS OF SLAVE LIFE.

At the house appears Mistress Epps.

149 INT. CABIN - LATER

149

MISTRESS EPPS

Platt. Platt!

Solomon goes to her.

MISTRESS EPPS

Wha's the commotion?

SOLOMON

A misunderstanding is all. It began
when I was sent to retrieve Patsey
from where she'd taken sabbatical
at Master Shaw's. Upon returning,
Master Epps believed Patsey and me
to be in conversation when we were
not all. I tried to explain, but it
lead to all this.

MISTRESS EPPS

Edwin! Edwin, bring yerself ta me.

Sheepishly, he goes to the Mistress.

MISTRESS EPPS

What is it? What is yer fascination
with Pats?

EPPS

I wouldn't say it--

MISTRESS EPPS

Ya cain't remain the Sabbath
without her under your eye? Ya are
a no-account bastard.

EPPS

Hold a moment --

MISTRESS EPPS
A filthy, godless heathen. My bed
is too holy for yah ta share.

EPPS
Wha's -- wha's he been tellin' yah?

MISTRESS EPPS
Of yer misbegotten ways.

EPPS
And he would know what of anythin'?
I ain't even spoken with him today.
Platt, yah lyin' nigger, have I?
Have I?

Discretion being the better part and all, Solomon remains silent.

EPPS
There; there's all the truth he
got. Damned nigger. Damn yah.

Epps push back into the house. The Mistress follows.

150 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

150

With the sun yet again high in the sky the slaves are working the field picking cotton. As before they sing a spiritual, the only thing that distracts them from the tedium at hand.

But there is no distracting from the heat. We see Henry begin to falter before it. And eventually collapse right in the dirt. Though the other slaves take note, none move to help him. None dare.

From Treach rather matter of factly:

TREACH
Get him water.

Edward runs to fetch a gourd. He carries it to Henry, DUMPS THE WATER ON HIM, BUT DOES NOT ACTUALLY GIVE HENRY ANYTHING TO DRINK.

Roused, Henry rights himself.

EDWARD
Go'won. Git up.

Unsteadily, Henry lifts himself and heads back into the field. He joins in again with the spiritual, as if the song is all that can keep him going.

151 INT. MASTER EPPS'S PLANTATION - SLAVE SHACKS - NIGHT 151

The slaves are asleep. Epps arrives, again without knocking, with his whip in hand. The slaves stir. Bob asks:

BOB
We dance tonight, massa?

Epps remains quietly focused on Patsey. And it's clear from her apprehensive expression just what it is he's come looking for. This time there is no escaping it. As if to acknowledge the badness to come, Phebe lightly cries.

152 EXT. MASTER EPPS'S PLANTATION - FIELD - NIGHT 152

WE MAKE A HARD CUT TO THE FIELD. Lit by moonlight, the cotton sets off an otherworldly glow. Into this space Epps is dragging Patsey. Far out into the field, he stops, stands as if gathering his manhood, then he's all over Patsey. He is rough and clumsy. It looks like something between an awkward rape and a virgin attempting his first sexual encounter.

Patsey does not respond in any way other than to continually turn her head from Epps, but otherwise remain as still as possible. If there is such a thing, she is vicious with her passive aggressiveness.

Epps's frustration mounts until as the Mistress Shaw had cautioned he crosses the line from passion to violence. He begins slapping Patsey to get a response from her. When that fails, he punches her which only leads to him taking up his whip and lashing Patsey MERCILESSLY. Still, she gives him nothing. Beaten, Patsey sits in the dirt among the cotton, Epps deep breathing above her. The desire for sex now having left him.

Epps heads from the field. Patsey is left where she is.

153 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - DAY 153

As Solomon makes his way back from the field, Mistress Epps calls to him. As previously, she has a list in hand that she holds out to him.

MISTRESS EPPS
Platt --

154 INT. BARTHOLOMEW'S - LATER**154**

As before, Solomon waits as Bartholomew fills Mistress Epps order. Among the items set before Solomon is another quantity of foolscap.

155 EXT. ROAD - LATER**155**

Solomon is making his way back to the Epps plantation.

He carries with him a sack filled with the goods from the store. As he walks, SOLOMON LOOKS AROUND CASUALLY. When he is certain he is alone, he sets down the sack, opens it and appropriates A SINGLE SHEET OF THE PAPER which he folds and places in his pocket. That done, he cinches up the sack and continues on his way.

156 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - LATER**156**

Solomon returns and delivers the items to the Mistress.

MISTRESS EPPS
No issues, Platt?

SOLOMON
No issue, Mistress.

157 INT. EPPS'S PLANTATION - SLAVE SHACK - LATER**157**

Solomon takes the slip of paper and hides it within his fiddle. Perhaps the safest place he can think of. He acts as though he's hiding away found gold. In reality it's more than that. The paper for him is a first step toward freedom.

158 INT. MASTER EPPS'S PLANTATION - MAIN HOUSE - EVENING**158**

It's another night of Epps's forced revelry. Coming in quick from the previous scene, we go from Solomon holding his fiddle, to playing it as the slaves are again made to dance.

Mistress Epps brings out a tray of freshly baked pastries. She sets them down on a table.

MISTRESS EPPS
A moment from the dancing. Come
sample what I baked for y'all.

The slaves, thankful for the rest as much as the food, file toward the tray reciting a chorus of "Thank you, Mistress." As Patsey moves toward the pastries:

MISTRESS EPPS
There'll be none for you, Patsey.

Patsey merely turns away. Her non responsiveness, however, serves only to incite the Mistress. Screaming:

MISTRESS EPPS
Yah see that? Did yah see the look
of insolence she give me?

EPPS
Seen nothin' but her turn away.

MISTRESS EPPS
It was hot, hateful scorn. It
filled that black face. Yah tell 12
Years a Slave 05.18.11 93. MISTRESS
EPPS
me yah did'n see it, then yah
choose not to look, or yah sayin' I
lie.

EPPS
Whatever it was, it passed.

MISTRESS EPPS
Is that how you are with the
niggers? Let every ill thought
fester in 'em. Look at 'em. They
foul with it; foul with their hate.
You let it be, it'll come back to
us in the dark a night. Yah want
that? Yah want them black animals
to leave us gut like pigs in our
own sleep?

Epps isn't sure how to respond to the inchoate berating.

It's an invitation for the Mistress to continue.

MISTRESS EPPS
You are manless. A damned eunuch if
ever there was. And if yah won't
stand for me, I'd pray you'd at
least be a credit to yer own kind
and beat every foul thought from
'em.

Epps does nothing. The Mistress lets her anger loose.

She moves quickly to Patsey, DRIVES HER NAILS INTO THE
SLAVE'S FACE AND DRAWS THEM DOWN ACROSS HER FEATURES.

FIVE DEEP AND BLOODY GASHES ARE LEFT IN PATSEY'S SKIN, the moment marked with appropriate screams. Patsey collapses on the floor, covering her bleeding face.

Mistress Epps:

MISTRESS EPPS
Beat it from 'em!

Thoroughly cuckolded by the Mistress's actions, Epps takes his whip and pulls Patsey out of the house. His intentions are plain.

All the slaves remain silent. The Mistress, however, displaying high satisfaction, entreats the others:

MISTRESS EPPS
Eat. Fill yourselves. And then we dance.

They eat, but without a hint of levity.

159 INT. MASTER EPPS'S PLANTATION - SLAVE SHACK - NIGHT

159

We come up on the slaves who lay sleeping. All except for Patsey. She rises from her bedding, goes to a corner of the cabin and removes something from a secretive location. She then moves over to Platt.

PATSEY
Platt -- Platt, you awake?

SOLOMON
I am.

PATSEY
I have a request; an act of kindness.

Patsey displays what she took from hiding. It is a LADY'S FINGER RING.

PATSEY
I secreted it from the Mistress.

SOLOMON
Return it!

PATSEY
It yours, Platt.

SOLOMON

For what cause?

PATSEY

All I ask: end my life. Take my
body to the margin of the swamp--

Solomon looks at Patsey as though she were insane.

SOLOMON

No.

PATSEY

Take me by the throat. Hold me low
in the water until I's still 'n
without life. Bury me in a lonely
place of dyin'.

SOLOMON

No! I will do no such thing. The --
the gory detail with which you
speak--

PATSEY

I thought on it long and hard.

SOLOMON

How does such despair even come to
you?

PATSEY

How can you not see it? I got no
comfort in this life; caught up
between Massa's lust 'n Mistress's
hate. If I cain't buy mercy from
yah, I'll beg it.

SOLOMON

There are others. Beg them. Why do
you consign me to eternal damnation
with such an un-Godly request?

PATSEY

There is God here! God is merciful,
and He forgive merciful acts. Won't
be no hell for you, Platt. But you
leave me damned with every breath I
draw. Born into this station,
twenty-two year I suffer. My body
so rent it 'mo scars than flesh.
End my misery, Platt. Do what I
ain't got the strength ta do
myself. End it.

Solomon says nothing. Clearly he's not about to do the deed.
As if delivering a curse:

PATSEY

One day I will look upon yah, 'n
you'll know yah shoulda freed me
when there was the chance.

160 BLACK

160

161 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

161

Hard times on the plantation. Where previously the field in bloom was a carpet of white, it is now patchy and under grown.

The slaves move through the field picking not cotton, but rather CATERPILLARS from the plants. The caterpillars have dined on the cotton and nearly destroyed the crop.

Epps is beside himself as he looks out over his ruined field.

EPPS

It is a plague.

TREACH

Caterpillars.

EPPS

A plague! It's damn Biblical. Two season God done sent a plague to smite me. I am near ruination. Why Treach? What I done that God hate me so? Do I not preach His word?

TREACH

The whole Bayou is suffering.

EPPS

I don't care nothin' fer the damn Bayou. I'm sufferin'.

Epps looks among his slaves at work, his enmity growing.

EPPS

It's that Godless lot. They brought this on me. I bring 'em God's word, and heathens they are, they brung me God's scorn.

Crazed, Epps runs into the field, taking himself from slave to slave delivering a whipping to all he can lay his hands on.

EPPS

Damn you! Damn you all! Damn you!

162 EXT. ROAD - DAY

162

Henry, Bob, Edward and Solomon are being transported in a cart driven by Epps. SOLOMON HAS HIS FIDDLE WITH HIM.

Along the way, on the side of the road, they see a SLAVE BEING ATTACKED BY DOGS as PATROLLERS BOTH WHITES AND A FEW NATIVE AMERICANS just stand and watch. The poor slave lets out an AGONIZING SCREECH as he is ripped at by the animals. A horrific sight, but a far too common end for slaves that seek freedom by running.

163 EXT. JUDGE TURNER'S PLANTATION - EVENING

163

Epps delivers his slaves to JUDGE TURNER, a distinguished man and extensive planter whose large estate is situated on Bayou Salle within a few miles of the gulf. Epps and Turner stand off to one side engaged in bargaining as Henry, Bob, Edward and Solomon wait and watch.

As they wait, playing in the near background, another group of SLAVES near a wagon are being divvied up. Among them are a MALE SLAVE, and a FEMALE SLAVE. She is perhaps his wife, or his sister -- Some relation. For whatever capricious reason, the Male Slave is herded back to the wagon while the Female is forced to stay. Clearly the pair are being split up, AS WE HAVE SEEN FAR TOO OFTEN WITH BLACK FAMILIES TO THIS POINT.

This time, the Male Slave will not remain idle as his relation is taken from him. He tries to claw past the OVERSEERS screaming for her.

The Overseers beat the man down, beat him back to wagon.

Despite this, the man continues to yell after the woman as the wagon pulls away.

The woman is comforted by another female slave, ANNA, who herself seems traumatized by both the physical and psychological violence of the events..

Seemingly oblivious to what has just transpired, Epps returns to his slaves and gives a parting salutation.

EPPS

Yer Judge Turner's for the season.
 For more if need be, until my crop
 return. It's my little fortune
 he'll even have yah. Every planter
 in the bayou is trying to unload
 his niggers on 'em. So yah'll bring
 no disrespect to me, and yah'll
 bring no biblical plagues to him.
 Be decent, ere I will return to
 deliver an ungodly whippin'.

164 INT. SLAVE SHACK - NIGHT

164

Slaves are crammed into the shack LITERALLY ON TOP OF EACH OTHER as they try to sleep. Some lay, some sit up. Packed in like cattle, there is barely room to move let alone draw a deep, clean breath. There is a real risk of suffocating in the mass. Among them some cough and wheeze. A CHILD CRIES --

Among them is Solomon who must believe at this point that his life has reached its very lowest point. The odds of survival are slight, let alone the chance of actually ever returning to his family. This clearly weighs on him as he struggles to find anything like comfortable space in the pen.

165 EXT. CANE FIELDS - DAY

165

An OVERSEER is explaining to the new slaves SOLOMON AMONG THEM how to cultivate cane. WITH A KNIFE IN HAND he demonstrates the process:

OVERSEER

Draw the cane from the rick, cut
 the top and flags from the stalk,
 understand? Leave only that part
 which is sound and healthy. Cast
 off the rest --

166 EXT. CANE FIELDS - DAY

166

ABOUT THIRTY SLAVES are working the field. They are divided into THREE GANGS. The first which draw the cane, the next lay the cane in the drill, the last then hoe the rows after.

Solomon is among a gang that draws and cuts, and he moves with speed and skill. Certainly more so than he displayed picking cotton.

Standing with his overseer, Judge Turner watches.

167 INT. SLAVE SHACK - NIGHT

167

Again, the slaves have been herded into the shack and pressed together.

As he tries to rest, sleep is nearly impossible, Solomon finds himself face to face with a woman, ANNA - the woman who we caught for a moment previously. She is awake. For a few beats she avoids eye contact with Solomon. If not in regard for what personal space he has, then for a certain trepidation she seems to have and desire to carry alone. She seem, like Solomon, to be unaccustomed to her surroundings and horribly frightened by them. Eventually her eyes meet Solomon's. She makes no sound, but great apprehension spills from her eyes.

Whatever's next, whatever horror awaits, she can barely stand to face. Fear, proximity -- They drive her hand to Solomon's. After a moment of seemingly reacquainting herself with genuine human contact, the woman TAKES SOLOMON'S HAND AND PRESSES IT TO HER BREAST. Solomon tries to jerk his hand away, but ANNA HOLDS IT IN PLACE.

Manipulating Solomon's hand, she begins to massage her breast. Solomon takes no real pleasure in the act, really, neither does Anna. THERE SHOULD BE A TRUE SENSE ANNA IS JUST SO VERY, VERY DESPERATE FOR HUMAN CONTACT, FOR THE NEED TO FEEL ALIVE AND LIKE A PERSON RATHER THAN AN ANIMAL THAT EMOTIONALLY SHE IS WILLING TO ENGAGE SOLOMON.

The need quickly compounds. Anna presses her lips to Solomon's. Eventually, SHE DIRECTS HIS HAND BENEATH HER DRESS AND BETWEEN HER LEGS. Solomon, with slightly more compassion than a guy making union wages, BEGINS TO MANIPULATE ANNA WITH HIS HAND. The act remains more perfunctory than passionate.

We can see Anna moving toward climax and eventual release. But more or substantially less than joyous sex, it is really just a drug-like inoculation against reality. But the feeling quickly fades. All that remains, as with most chance encounters, is regret.

And there is shame, too. This is put on display as Anna turns away from Solomon. As quickly as it began, it is as though the act had not happened at all.

168 EXT. TURNER PLANTATION - MORNING

168

Slaves are making their way out to the cane field. As Solomon trudges off to labor, he notices a wagon being LOADED UP WITH FEMALE SLAVES. Among them is ANNA, fear quite thick on her face as she is about to be delivered to some as of yet unknown fate. As little as he knows of her, as awkward as it was, the pair shared a moment and it is a moment not easily discarded. Solomon is almost unconsciously propelled toward Anna.

Before Solomon can close the distance, the DRIVER chides the horse team and the wagon departs.

Anna again looks back to Solomon, her eyes quietly pleading for him to do -- something. But there is nothing for him to do. Nothing he can do. The wagon rolls on -- and then it and Anna are gone.

169 EXT. TURNER PLANTATION - EVENING

169

Segregated slightly from other slaves, Solomon sits before a small fire. A thought comes to Solomon.

Crossing to some fencing, he tears loose a bit of wire.

With the wire Solomon fashions a loop. Holding the wire to the flame of the fire, Solomon heats it until it glows, takes a moment -- THEN PRESSES THE LOOP TO THE FLESH OF HIS LEFT INNER-FOREARM. He winces greatly, and his eyes well not merely from the pain of the burns, but from other complexities as well. Solomon repeats the process again and again, renting his flesh in near self-mutilation as though doing penance and circling the burns until the marks resemble the STAIN GLASS FLOWER ELIZABETH HAD MADE FOR HIM. Here, at nearly his lowest point, Solomon literally burns the memory of his family onto himself.

170 EXT. JUDGE TURNER'S PLANTATION - GREAT HOUSE - EVENING

170

Solomon waits outside the house on the porch. As he waits he slides his finger tips over his still freshly-burned tattoo. A HOUSE NIGGER approaches and admonishes Solomon.

HOUSE NIGGER
Off the porch. Get off.

Like a dog shooed away, Solomon steps down.

Eventually Judge Turner exits the house and crosses to Solomon.

SOLOMON
Sir --

JUDGE TURNER

Platt is it? Have you cultivated
cane previously?

SOLOMON

No, sir, I have not.

JUDGE TURNER

You take to it quite naturally.

SOLOMON

I surprise myself. I was poor for
cotton picking, and suffered the
lash on a schedule. For whatever
reason the Lord has chosen to give
me skills in the cane he has
withheld otherwise.

JUDGE TURNER

From where do you hail?

SOLOMON

Washington, sir.

JUDGE TURNER

And upon bill of sale, here you
came directly?

SOLOMON

Sir.

JUDGE TURNER

You play the fiddle?

SOLOMON

I do.

JUDGE TURNER

Where did you learn?

SOLOMON

Over time. Here and there.

JUDGE TURNER

Are you educated?

SOLOMON

Niggers are hired to work, not to
read and write.

JUDGE TURNER

Epps warned that I should mind you above all. However, I cannot help but take note of you. You don't carry yourself like the other niggers, and I sense that you have seen more of the world than you admit.

SOLOMON

I am just what is before you, sir.
Nothing more.

If anything Turner is impressed by Solomon's ability to dodge.

JUDGE TURNER

What is before me is far too clever to be relegated to the field. You are to be elevated to a driver in the sugar house. We'll see if you take to the whip as well as the cane. You'll board with the other trustees.

SOLOMON

Sir.

JUDGE TURNER

And Platt, now and again I hear of patrons in need of a good fiddler. I will pass along your name. What you earn is yours to keep.

171 INT. JUDGE TURNER'S PLANTATION - SUGAR HOUSE - DAY

171

The mill is an "immense brick building" where the cane is refined. There is much machinery: boilers, an endless carrier made of chain and wood -- The sugar house is worked by ADULT SLAVES AND CHILDREN ALIKE.

A BLACK DRIVER hands Solomon a lash. Though well familiar with being on the receiving end of the whip, Solomon is unsure of how to handle the business end.

SOLOMON

How do I use it?

DRIVER

It's a lash. Easy as usin' a door knob. 'Cept wit a lash people pay ya mind.

172 INT. JUDGE TURNER'S PLANTATION - SUGAR HOUSE - LATER 172

SLAVES working, toiling. Solomon watches over them, but does little else. The OVERSEER, not satisfied with the work being done, calls to Solomon.

SUGAR HOUSE OVERSEER
Drive them niggers!

SOLOMON USES THE LASH SPARINGLY AND POORLY, barely touching the slaves before him. The Overseer does not hesitate in using the lash on Solomon.

SUGAR HOUSE OVERSEER
Drive them niggers.

Solomon uses the lash again, but this time with more authority. What choice does he have?

173 EXT. TURNER PLANTATION - LATER 173

Work over, the slaves congregate to eat.

As Solomon eats, he takes note of the JUICE FROM SOME BERRIES ON HIS PLATE.

174 EXT. JUDGE TURNER'S PLANTATION - EVENING 174

We see a DUCK making its way along a water bank. Moving quickly, Solomon LEAPS INTO FRAME and pounces on it. The bird in grasp, Solomon pulls a feather loose.

175 EXT. TURNER PLANTATION - NIGHT 175

Secreted away out near the edge of the bayou and sitting by a small fire, Solomon takes the slip of paper from his fiddle. It is yellowed, showing age, but still usable.

Dipping the duck's feather a quill into the crushed berries, Solomon attempts to write a bit on the paper.

The berry juice, too free-flowing, is unusable as ink.

Solomon returns the paper to the fiddle. He has some scraps of food with him, which he snacks on.

176 INT. YARNEY'S HOUSE - EVENING 176

A party has commenced at the noble home of one MR. YARNEY. A group of REVELERS have gathered and are on the dance floor. As entertainment, SOLOMON PLAYS THE FIDDLE, and does so with his usual liveliness. Clearly a good time is being had by all.

177 INT. YARNEY'S HOUSE - STUDY - LATER

177

Gay voices filter from the main room as off in a study stand Solomon and Yarney. A very pleased Mr. Yarney is presenting Solomon with 17 dollars in coins.

YARNEY

I have never seen it before; merry makers so pleased with a performance they take up a contribution. Seventeen dollars, Platt. I'd say that'd make you a millionaire among niggers. Certainly the wealthiest on the Bayou. And how will you spend it? Furniture for your cabin, a pocket knife, perhaps. A coat, hat? Some smart new shoes.

SOLOMON

I cannot say. I am too amazed by the amount.

YARNEY

Seventeen dollars. The world is yours.

178 EXT. ROAD - EVENING

178

Solomon is returning to Judge Turner's on foot. There is only the moonlight with which to light his way. As he travels, Solomon hears steps behind him. He turns and sees TWO BLACKS. Solomon relaxes. Fellow blacks; surely they mean him no harm. As Solomon looks them over carefully, their clothes tatters and they themselves covered in dirt, it becomes quite clear they are not just slaves. A fact confirmed when they step menacingly toward Solomon, ONE WITH A SHIV IN HAND.

At first it seems they want his money. Worse, THEY GO FOR HIS FIDDLE.

Solomon has but a moment to brace himself before he is attacked, TAKING A CUT TO THE ARM. Solomon fights back, picking up a pine knot and striking his attacker over the head. That takes the fight out of him, and both men retreat back the way they came leaving Solomon be.

179 INT. JUDGE TURNER'S PLANTATION - SUGAR HOUSE - DAY

179

Solomon is again driving slaves, using the whip to spur them to work harder. He does so with perhaps a bit more vigor; his displaced anger directed at the slaves before him.

180 EXT. TURNER PLANTATION - NIGHT

180

Alone out on the edge of the Bayou, Solomon is playing a low air on his violin WHILE SNACKING ON SCRAPS OF BACON.

As he plays, something appears in the distance. From the edge of the bayou, coming forth like an apparition arisen from the earth, is CELESTE. She is a young woman of about 19 years of age and far whiter than most blacks.

"IT REQUIRED CLOSE INSPECTION TO DISTINGUISH IN HER FEATURE THE SLIGHTEST TRACE OF AFRICAN BLOOD." Beyond that, she is pale and haggard, but still lovely.

Celeste moves to Solomon without fear or hesitation. As Solomon, startled, takes her in, Celeste says quite plainly:

CELESTE

I am hungry. Give me food.

SOLOMON

Who are you?

CELESTE

I'm hungry.

SOLOMON

All I have are some scraps of bacon.

Solomon gives her some of his food. Celeste, famished, devours it.

SOLOMON

What is your name?

CELESTE

My name is Celeste.

SOLOMON

What are your circumstances?

CELESTE

I belong ta Massa Carey, and 'ave been two days among da palmettoes. Celeste is sick and cain't work, and would rather die in the swamp than be whipped to death by the overseer. So I took myself away. Massa's dogs won't follow me. The patrollers 'ave tried to set dem on me. But dey a secret between dem and Celeste, and dey won't mind the devilish orders of the overseer.

Celeste lifts her head from the food she gnaws on.

CELESTE

Do you believe me?

SOLOMON

Yes.

CELESTE

Why?

SOLOMON

There are some whose tracks the hounds will refuse to follow.

CELESTE

Give me more food. I'm starvin'.

SOLOMON

This is all my allowance for the rest of--

CELESTE

Give it to me.

Almost as if compelled, Solomon does as ordered. As she eats, Celeste aggrandizes herself:

CELESTE

Most slaves escape at night. The overseers are alert for such chicanes. But Celeste tricked dem 'n alight in the middle of the day wit the sun up at its highest. The place of my concealment now deep in the swamp, not half a mile from Massa's plantation, and a world apart. A world a tall trees whose long arms make fo' a canopy so dense dey keep away even the beams of the sun. It twilight always in Celeste's world, even in the brightest day. I will live there, and I will live freely. The overseers are a cowardly lot. Dey will not go where their dogs show fear and where it always be night. Others will join me, in the twilight and we ain't gunna be slaves no 'mo forever.

Solomon isn't sure what to say. Before he can say anything:

CELESTE

Celeste will come to you again in the night. You will have food for her.

Celeste departs the way she came; as though she were a vision.

181 EXT. JUDGE TURNER'S PLANTATION - FOOD STORAGE - NIGHT 181

Solomon stealthfully makes his way into the storage shed.

Dried and smoked meats are hung, and milled corn is about. Taking out a handkerchief, Solomon begins to load it with food. Not too much. Not so much his thievery will be readily noticed, but he does avail himself.

182 EXT. TURNER PLANTATION - NIGHT 182

Solomon plays his violin, but plays it with an anxious nature as he waits.

Then, as before, a figure appears in the distance. It is Celeste coming out of the night. She makes her way directly to Solomon. With no greeting, she asks:

CELESTE

I am hungry.

Solomon gives Celeste the handkerchief he's filled. She opens it, and begins to devour the food. As she eats, she asks:

CELESTE

I was rude, and didn't even ask yo
name.

SOLOMON

Platt.
Solomon. Solomon is my true name.

CELESTE

Was you free?

SOLOMON

I was. I am.

Solomon exposes his wrist, displays his tattoo as he
announces:

SOLOMON

I remain free in my heart.

Giving a laugh as though it's the silliest thing she's heard.

CELESTE

Free heart means nothin if'n yo
body gunna die a slave.

SOLOMON

I will not.

CELESTE

Celeste knows you ain't gunna run.
Celeste knows it ain't your nature.

SOLOMON

I have other plans.

Patsey is laid on some boards where she remains for a long
time with eyes closed and groaning in agony. Phebe applies
melted tallow to her wounds, and all try to assist and
console her.

Celeste gives a look. She is curious to hear more.

Solomon, both conspiratorially and accentuating what he
considers to be his own cleverness:

SOLOMON

I have secreted a piece of paper.
 Just a slip of foolscrap. I have
 kept it safe and dry for years on.
 Nearly relinquished my life
 protecting it. I am experimenting
 with ways to create ink. When that
 is accomplished I will write a
 letter.

CELESTE

A letter to?

SOLOMON

There are those in New York of much
 substance who will spare no energy
 to secure my liberty. Once I have
 the letter to them, it is only a
 matter of time before I am free.

CELESTE

How'll ya mail da letter? Who will
 trust to post it? A nigger that can
 read and write is a nigger that'll
 hang.

Solomon can't answer this question. It is the glaring hole in
 his plan.

CELESTE

No. Solomon will never again see
 New York. Celeste's words is harsh,
 I know, but dey true. I entreat yah
 to come live wit me in the constant
 twilight. I entreat yah for your
 body to not die no slave.

Having finished eating:

CELESTE

Celeste will come again in de
 night. You will bring her 'mo food.

SOLOMON

I risk discovery to take more.

CELESTE

You will bring Celeste 'mo food.

And with that Celeste again moves back into the darkness.

Solomon is at his station driving slaves. A WHITE FIELD OVERSEER approaches, his countenance quite stern.

FIELD OVERSEER

Platt. Come along.

Solomon fears his thievery has been discovered. He begins to remove his whip.

FIELD OVERSEER

Naw. Bring yer whip.

Solomon starts for Northup, but he is pulled back by the Sheriff who is keen to determine Solomon's true identity.

Solomon follows the Overseer from the Sugar House.

184 EXT. TURNER PLANTATION - MOMENTS LATER

184

Solomon is walked out to the field. The two slaves who previously attacked Solomon in the night are present.

Both are bound and muzzled strictly and look to have already been thoroughly beaten. There, too, is Judge Turner along with a couple of WHITE PATROLLERS and several NATIVE AMERICANS who have captured the runaways.

There is one among the group who is of MIXED RACE, black and Native American. Though his skin is fairer as would be a Native American, HIS HAIR HAS THE KINK OF AN AFRO.

The Judge asks of Solomon:

JUDGE TURNER

Do you recognize them, Platt? Are these the pair who accosted you?

Solomon stares, but does not dare answer.

JUDGE TURNER

Runaways from a plantation in the vicinity of Lamourie. Hidden away for three weeks. The Bayou is full with them. Look carefully. Are they those who meant to take your life?

SOLOMON

I don't know their intent.

JUDGE TURNER

What else could it be? Beyond their hunger and desperation, their heads are filled to the point of lunacy with mythic idyll of life in the north. Nothing good will ever come of a nigger in flight.

SOLOMON

I cannot say what plans they held for me.

JUDGE TURNER

But these are the two, then?

SOLOMON

I am uncertain.

JUDGE TURNER

You may have your satisfaction with them. You deserve as much and they deserve no better.

SOLOMON

Master, I am uncertain.

JUDGE TURNER

Look. Look careful.

In time Patsey opens her eyes. She looks to Solomon.

Solomon does, but does not reply.

JUDGE TURNER

Even to you the features of your own kind are indistinguishable. The eyes. Subdued, and their eyes still burn. Is their hate familiar to you? Is it the hate that came at you in the night? Have your way with them, Platt.

Solomon does not move for his whip. He says as convincingly as possible.

SOLOMON

They are not the ones.

Turner may not quite believe Solomon, but he does not speak against him. The Judge to the Patrollers:

JUDGE TURNER

Return them to Lamourie, but strip them bare and parade them in the streets. Make a show of it. A reminder to all the price of flight is of no bad consequence. Back to work, Platt.

Solomon watches at the slaves are stripped of the remainder of their clothing and are dragged away.

JUDGE TURNER
No worries, Platt. We'll have your niggers soon enough.

185 BLACK 185

186 EXT. TURNER PLANTATION - EVENING 186

Solomon is picking at the bark of a white maple.

187 EXT. TURNER PLANTATION - EVENING 187

In a tin cup, over a fire, Solomon boils the white maple bark in just a bit of water.

188 INT. JUDGE TURNER'S PLANTATION - SLAVES CABIN - NIGHT 188

As others sleep, by the light of dying coals, Solomon uses the quill to test the boiled bark. The liquid holds as a form of ink. It is not ideal, but it is legible on the page. Armed with this, Solomon writes his letter.

189 EXT. TURNER PLANTATION - NIGHT 189

Solomon sits with Celeste. He relates his news to her.

SOLOMON
I have my letter. I succeeded in making ink by boiling white maple bark. When all were asleep in the cabin, by the light of the coals, lying upon my plank couch I managed to complete a somewhat lengthy epistle. The letter is directed to an old acquaintance at Sandy Hill stating my condition and urging him to take measures to restore me to liberty.

CELESTE

Yah has your freedom then?

SOLOMON

All that remains is to contrive measures by which the letter can safely be deposited in the post office.

As he does, Epps makes his way over.

When Celeste speaks she is quite melancholy.

CELESTE

I have resolved to return to my Massa.

Solomon gives an unnerved look. This is not good news.

SOLOMON

Is it more food you need?

CELESTE

I live in fear.

SOLOMON

None will come after you in the swamps.

CELESTE

It ain't the patrollers I scared of -- At all seasons the howling of wild animals can be heard at night along the border of the swamps. At first their calls were welcomin'. Dey too was free, 'n I thought dey greeted me like a sistah. Lately, dey cries have turned horrifyin'.

SOLOMON

The solitude plays tricks. It's your impression, nothing more.

CELESTE

Several times now they made me a midnight call, awakening me from what little sleep I take wit a terrifyin' growl. They mean to kill Celeste.

SOLOMON

If you go back to your master you face the same.

CELESTE

My freedom been nothin' but a
daydream. So was Celeste's thoughts
of slaves conjoinin' in the bayou.
It is lonely dwellin' waiting for
others who won't never come.

SOLOMON

Better the loneliness. You have
been free most of the summer.
Return now and your master will
make example of you. Celeste, go
north. Make your way by night --

CELESTE

It'll only be worse if'n Celeste
don't go back of her own will.

SOLOMON

You won't be caught. The dogs won't
track you. You are -- you are
unique. Please, Celeste --

Celeste considers this. But her course of action is clear:

She does not say a word. She just looks at him -- and then
her eyes close again.

CELESTE

You got alternatives, Solomon.
Celeste got no one to write a
letter to.

As if to punctuate her resolve, without a word more Celeste
departs toward the swamp.

SOLOMON

Celeste -- Celeste!

She continues on and disappears into the night. Solomon will
never see her again.

190 BLACK

190

191 EXT. EPPS'S PLANTATION - DAY

191

We come up now outside of Master Epps's plantation. Epps
stands in the drive. He's in surprisingly good spirits as
Solomon AGED SEVERAL YEARS NOW Wiley and Bob trudge their way
toward Epps and his other slaves who are gathered.

The cotton field is in full bloom, the crop fully returned.

EPPS

A joyous day. A joyous day. Dark times is behind us. Clean livin' 'n prayer done lifted the plague.

Indicating to the cotton:

EPPS

As thick 'n white as New England snow. 'N now my niggers is returned to me.

(to Solomon)

Heard Judge Turner made you a driver. A driver? Oh, did you beguile him, Platt, with your slick nigger ways? Well, yah won't stand idle with a lash in hand. Not on my land. Much work to do. Days of old long since, eh? Joyous indeed.

Throughout Epps's welcome, Solomon's focus is on Patsey who is lined up with the other slaves. SHE IS NOW MORE HAGGARD THAN WHEN WE LAST SAW HER. Her face and arms display many new scars. It's clear that in the intervening years she has quite literally been a whipping boy for Epps and the Mistress.

192 EXT. EPPS'S PLANTATION - COTTON FIELD - DAY

192

The slaves are out working on the field. Among their ranks is a white man, ARMSBY. He is wholly unskilled at picking cotton, and he puts little effort into the job.

As we meet him he seems a decent sort if a little short on self-motivation. In anachronistic terminology, he'd be called a "slacker."

193 INT. MASTER EPPS'S PLANTATION - GIN HOUSE - EVENING

193

As Epps said, it is days of long since. The slaves are back to having their cotton weighed in the Gin House

EPPS

Wiley?

TREACH

Two hundred sixty pounds.

EPPS

Bob?

TREACH

Three hundred forty pounds for Bob.

EPPS

Patsey?

TREACH

Five hundred twenty pounds.

EPPS

Platt?

TREACH

One hundred sixty pounds.

Before Treach is even done announcing the weight, Epps has pulled Solomon aside to where Uncle Abram already awaits his fate.

EPPS

Armsby?

TREACH

Sixty four pounds.

Epps speaks to Armsby sternly, but nothing of the manner in which he would address the slaves.

EPPS

A good days labor would average two hundred pounds.

ARMSBY

Yes, sir.

EPPS

I'm sure in time y'll develope as a picker, but it takes effort, boy. Put some damn effort into it.

ARMSBY

Yes, sir.

To Treach, regarding Solomon and Abram:

EPPS

Take 'em out. Get to whippin'.

No force is needed. The slaves understand the situation.

194 BLACK

194

They follow Treach out of the Gin house.

195 EXT. EPPS'S PLANTATION - SLAVE SHACK - NIGHT

195

We come in after the punishment has been dealt. Patsey tends to Uncle Abram's back as Armsby applies liniments to Solomon's. As he does, Armsby muses:

ARMSBY

It's a tragedy. How does such come to pass? Working a field and picking cotton like a lowly hand. I'm of a damn sight better station. And my desires never lacked for imagination, though I will admit they have at times been short on ingenuity. But only at times. I've worked as an overseer, you know.

SOLOMON

I did not, sir.

ARMSBY

Not "sir." Just Armsby. Not owed more than any other in the field. I worked plantations from Virginia, down into Alabama. I could manage easy a hundred slaves and have done so. But to toil in the field? Never thought that would come to pass. Never. But times are desperate. Where once I had said "no" to Epps and his merger offerings, I returned cap in hand. Look at what I've become.

SOLOMON

How did you arrive at such a place, if I may ask?

ARMSBY

Ask. It's just conversation.

From a pocket Armsby produces a flask.

ARMSBY

I became a little too dependant on the whisky, a little too undependable on the job. Before you say I'm just a sorry drunkard, let me state my case: As reliable employment as overseeing is, it's no easy chore on the spirit. I say no man of conscious can take the lash to another human day in, and day out without shredding at his own self. Takes him to a place where he either makes excuses within his mind to be unaffected -- Or finds some way to trample his guilty sensations. Well, I trampled.

Armsby takes a drink.

ARMSBY

And with frequency.

SOLOMON

Where is your place of birth?

ARMSBY

Maryland. Have you traveled there?

SOLOMON

I cannot say that I have.

ARMSBY

Fine country. More seasonal than the bayou. A deal less humid. Stop a moment. Have you any other name than Platt?

SOLOMON

Why did you leave it?

ARMSBY

To make my fortune, of course. I gave in to tales of wealth and prosperity that were the lore of the southern states: all that's needed being a patch of land and a few good growing seasons. Cotton, or tobacco. And then locating a proper bank to store your riches. But such profitable outcomes are reserved for the plantation masters. It's the lot of the rest of us to serve. So I settled to be an overseer, and failed as well at that. In the meantime my dreams gave way to reality. Now, I want nothing more than to earn a decent wage. And get myself home.

Armsby takes another drink and leans back.

ARMSBY

Oh, to be a nigger. Not a concern in the world and every need taken care off. Consider yourself fortunate, Platt. It's the plight of the white to worry.

196 INT. MASTER EPPS'S PLANTATION - SLAVE SHACKS - MORNING

196

We again hear the sound of the HORN BLOWING signaling the start of the work day for the slave.

197 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

197

With the sun yet again high in the sky the slaves are working the field picking cotton. As before they sing a spiritual, the only thing that distracts them from the tedium at hand.

But there is no distracting from the heat. We see Uncle Abram begin to falter and finally drop down to the ground.

Treach calls to Edward:

TREACH

Get him water.

Edward runs to fetch water which he carries to Abram and DUMPS ON HIM BUT ABRAM DOES NOT RISE. DOES NOT MOVE.

At this point, the sounds of the singing from the others tapers off as they realize Abram isn't getting up.

198 EXT. MASTER EPPS'S PLANTATION - FIELD - LATER**198**

We are beyond the main of the plantation, the cotton field in the background. Solomon, Bob and Wiley are digging a grave in the dirt. The uncovered body of Abram lays near. Having dug down an appropriate distance, the three men take the body and, very unceremoniously, place it into the ground. That done, they begin to cover it with dirt. It is all the more of a funeral that Abram will receive.

199 INT. MASTER EPPS'S PLANTATION - GIN HOUSE - EVENING**199**

As always, the day's pickings are again being weighed.

TREACH

One hundred sixty pounds for Wiley.

Clearly displeased, Epps pulls Wiley from the line.

EPPS

Platt?

TREACH

Eighty eight pounds for Platt.

200 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - DAY**200**

Epps moves to Solomon. As way of explanation but with defiance:

SOLOMON

We buried Abram today --

201 EXT. MASTER EPPS'S PLANTATION - GIN HOUSE - LATER**201**

WE MAKE A QUICK CUT TO THE OUTSIDE OF THE GIN HOUSE. The reason for their low totals obviously doesn't matter as Solomon, Bob and Wiley receive a lashing for their lack of productivity.

As the last lash falls on his back, Epps moves directly to Solomon.

EPPS

You are a disgrace. Unfit ta
 associate with a decent cotton-
 pickin' nigger. The Lord don't
 ignore even the lowest of his
 animals. But the Almighty hold you
 in such low regard He give you no
 skills. None. How miserable your
 shabbiness must be.

(beat)

Get yerself clean. We dance
 tonight.

202 INT. EPPS'S PLANTATION - SLAVE SHACK - NIGHT

202

Solomon lays down, but can't rest. The harshness of this life
 has mounted to the point he can take no more. He gets up, he
 goes to RETRIEVE THE SMALL SACK IN WHICH HE KEEPS HIS
 EARNINGS AS WELL AS HIS LETTER. But thinking better of it,
 Solomon returns the letter to hiding. He takes the money with
 him and cautiously moves from the cabin.

203 EXT. MASTER EPPS'S PLANTATION - LATER

203

Solomon is heading through the darkness toward another small
 cabin on the property. There is the light of the lantern in
 the window. Solomon steels himself, knocks on the door. From
 inside we hear:

ARMSBY (V.O.)

Enter.

204 INT. EPPS'S PLANTATION - ARMSBY'S SHACK - LATER

204

The door opens. Solomon enters. Armsby is surprised to see
 him. So much so, he isn't sure what greeting to give. Solomon
 gives a blunt introduction. Re: the coins:

SOLOMON

The proceeds of my fiddling
 performances. A few picayunes, but
 all I have in the world. I promise
 them to you if you will do me the
 favor I require. But I beg you not
 to expose me if you cannot grant
 the request.

ARMSBY

What is it you ask?

SOLOMON

First, your word, sir.

ARMSBY

On my honor.

SOLOMON

It is a simple enough request. I ask only that you deposit a letter in the Marksville post office. And that you keep the action an inviolable secret forever. The details of the letter are of no consequence. Even at that, for me to write it would be a self-imposition of much pain and suffering.

ARMSBY

Where's the letter now?

SOLOMON

It is not yet composed. I will have it in a day. Two at most.

Armsby considers the request.

ARMSBY

I will do as you ask. And will accept whatever payment is offered.

Solomon hesitates. In the moment, he's not so sure he can wholly give himself over to trust.

ARMSBY

To assist you, I put my own self at risk. I will do so, but not without fair compensation.

Solomon hands over the money.

ARMSBY

Compose your letter. We will meet again. In two days?

SOLOMON

In two days. Thank you.

Solomon exits.

205 INT. EPPS'S PLANTATION - SLAVE SHACK - NIGHT

205

Solomon rests but does not sleep. He has set himself on a course, one from which there is no departure.

206 EXT. EPPS'S PLANTATION - COTTON FIELD - DAY**206**

Solomon and the slaves pick cotton. Armsby is conspicuously NOT laboring in the field. As Solomon works he is watched by Epps. Watched more than he normally is. For a moment it seems it might just be a matter of perspective; Solomon's unease over his actions.

But soon Epps is joined by Armsby. The two men stand and talk, their looks locked toward Solomon.

Whatever it is that is occurring between them continues for a long, long moment. But Epps makes no move toward Solomon. Solomon continues with his work.

207 INT. EPPS'S PLANTATION - SLAVE SHACK - NIGHT**207**

The slaves are at rests. Gripping his whip Epps enters, without so much as a knock at the door. For a moment there's curiosity; is he there for a dance, for Patsey?

Looking right to Solomon:

EPPS

Get up.

Planks of wood are being delivered and unloaded.

Solomon does. Epps heads back out into the dark. He says nothing, but his directive is clear: Follow me.

208 EXT. MASTER EPPS'S PLANTATION - SLAVE SHACK - CONTINUOUS**208**

Solomon comes out into the dark. Nearly hidden in the shadows is a bitter Epps. Despite the lack of light, Epps's malevolence is quite clear. His whip twisting in his hand.

EPPS

Well, boy. I understand I've got a larned nigger that writes letters and tries to get white fellows to mail 'em.

Solomon, hardly missing a beat, plays this off.

SOLOMON

Don't know nothing about it, Master Epps. Don't know nothing about it, sir.

EPPS

Yah wasn't over with Armsby night before last?

SOLOMON

No, master.

EPPS

Hav'nt yah asked that fella to mail a letter fer yah at Marksville?

Without overplaying things, Solomon gets real slick.

SOLOMON

Why, Lord, master, I never spoke but three words to him in all my life. I don't know what you mean.

EPPS

Well, Armsby tol' me today the devil was among my niggers. That I had one that needed close watchin' or he would run away. When I axed him why, he said you come over to him and waked him up in the middle of the night and wanted him to carry a letter to Marksville. What have yah got to say to that?

SOLOMON

All I have to say, master, is all that need be said. There is no truth in it. How could I write a letter without ink or paper? There is nobody I want to write to 'cause I hain't got no friends living as I know of. That Armsby is a lying drunken fellow, they say, and nobody believes him anyway. You know I always tell the truth, and that I never go off the plantation without your given word. Now, master, I can see what that Armsby is after, plain enough. Didn't he want you to hire him for an overseer?

EPPS

Yes.

SOLOMON

That's it. He wants to make you believe we're all going to run away and then he thinks you'll hire an overseer to watch us. He just made that story out of whole cloth, 'cause he wants to get a situation. It's all a lie, master, you may depend on't.

Epps shallow mind is so easily manipulated Solomon is able to work it as though he were performing origami. We can nearly see Epps's thoughts being folded.

EPPS

I'm damned, Platt, if I don't believe you tell the truth. He must take me for a soft, to think he can come it over me with them kind of yarns, musn't he? Maybe he think he can fool me. Maybe he thinks I don't know nothing -- Can't take care of my own niggers. Soft soap old Epps. Damn Armsby! Set the dogs on him, Platt. That filthy unloved bastard. He will not separate me from my niggers. I will drive him from my land before the sun comes over it. Ohh, were he not free and white, Platt. Were he not free and white.
Solomon Northup is my name.

Epps heads off to do as promised.

209 EXT. MASTER EPPS'S PLANTATION - NIGHT

209

Having found a lonely spot, Solomon has struck a small fire. He has in his hand his letter. With no ceremony, he casts it upon the flames and watches it burn.

210 BLACK

210

211 EXT. MASTER EPPS'S PLANTATION - DAY

211

It's the Sabbath. The slaves are left to themselves to do their own chores. At the moment they are down by the river washing their clothes in the water. Missing from the field of labor is Patsey, for whom Epps hollers.

EPPS

Patsey -- Patsey!

Epps comes down to the bank and asks of the slaves:

EPPS
Where is she? Where is Patsey?

No one answers.

EPPS
Talk, Damn you!

PHEBE
We have no knowledge of her, Massa.

EPPS
The hell you don't! You know where she is! She run off, ain't she? She's escaped, and you miserable black dogs stand like the deaf and dumb. My best cotton picking nigger! My best. I'd give yah all up for her. Where she gone?

Not a word spoken. Epps wades in and among the slaves and begins to whip at them recklessly.

EPPS
Speak! Speak!

The slaves say nothing. There is nothing for them to say. They don't know where she is. Eventually Epps slows, then stops. He drops down in great sorrow.

EPPS
She run off -- Pats run off.

212 EXT. EPPS'S PLANTATION - LATER

212

Epps sits on the piazza looking quite forlorn. He looks up only to see Patsey returning to the plantation. Epps steps up to greet her, with anger rather than relief.

As they hear his angry voice, the slaves step around from where they are hanging their laundry to dry.

213 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - DAY

213

EPPS
Run off. Run off, did you?

PATSEY
Massa Epps--

EPPS

You miserable wench! Where you been?

PATSEY

I been nowhere.

EPPS

Lies to your misdeeds!

PATSEY

The Sabbath day, Massa. I took me a walk to commune wit da Lord.

EPPS

Bring the Lord into yer deceptions? Yah Godless... Shaw's. Comin' from Shaw's plantation weren't yah?

PATSEY

No --

EPPS

Yah didn't run, did yah? Yah took yerself ta pleasure Shaw. Yah gave baser passion to that unblushin' libertine!

Solomon tries to intervene:

SOLOMON

Master Epps--

EPPS

Now yah speak? Now that yah want to add to 'er lies yah find yer tongue.

Epps goes to strike Solomon, but Patsey pulls his arm back.

PATSEY

Do not strike him. I went to Massa Shaw's plantation!

EPPS

Yah admit it.

PATSEY

Freely. And you know why.

Patsey takes soap from the pocket of her dress.

PATSEY

I got this from Mistress Shaw.
 Misstress Epps won't even grant me
 no soap ta clean with. Stink so
 much I make myself gag. Five
 hundred pounds 'a cotton day in,
 day out. More than any man here.
 And 'fo that I will be clean; that
 all I ax. Dis here what I went to
 Shaw's 'fo.

EPPS

You lie --

PATSEY

The Lord knows that's all.

EPPS

You lie!

PATSEY

And you blind wit yer own
 covetousness. I don't lie, Massa.
 If you kill me, I'll stick ta that.

EPPS

Oh, I'll fetch you down. I'll learn
 you to go to Shaw's. Platt, run get
 four stakes and straps a leather.

At first Solomon does not move. Epps level all his rage at
 him:

EPPS

Get them stakes!

Solomon runs quickly to the tool shed. In short order he
 returns with the stakes and a hammer.

EPPS

Drive 'em into the ground.

As Solomon does so, Epps gives an order to Wiley and Edward.

EPPS

Strip her. Strike her bare 'n lash
 her to the stakes.

Mistress Epps has now come from the Great House. She gazes on
 the scene with an air of heartless satisfaction.

Now tied face down to the stakes, Epps stands over Patsey
 with his whip.

EPPS

Yah done this to yerself, Pats!

The slaves are now employed working on an extension to the Great House. Overseeing the project is MR. AVERY.

Epps hoists the whip to strike, holds it high -- but no matter his rage, Epps cannot bring himself to deliver the blow. He looks to Mistress Epps who now stands gloating and spurring him on.

MISTRESS EPPS

Do it! Strike the life from her.

Epps again hoists the whip. It trembles in his hand ahead of the act -- But he does not have it in him to deliver such a beating. Turning to Solomon, thrusting the whip at him:

EPPS

Beat her.

Solomon doesn't move. Epps shoves the whip into his hand.

EPPS

Give her the whip. Give it all to her!

Patsey, begging to Solomon:

PATSEY

I'd rather it you, Platt.

EPPS

Strike her, or yah'll get the same!

Solomon takes a step back. He unfurls the whip -- He begins to whip Patsey. Lash after lash, Patsey squirms before it. Epps eyes fill with tears, he is nearly too distraught to watch.

But the Mistress -- She is not satisfied with Solomon's half-hearted effort.

MISTRESS EPPS

He pantomimes. There ain't barely a welt on her. That's what your niggers make of yah; a fool fer the takin'.

Epps's grief is replaced by fury. Directly to Solomon:

EPPS

Yah will strike her. Yah will
strike her until her flesh is rent
and meat and blood flow equal, or
every nigger in my sight will die!

Solomon can't do it, even if it means his life. But from the
ground, from Patsey:

PATSEY

Do it, Platt. Don't stop until I am
dead.

What else can he do? Solomon begins to whip, to truly whip
Patsey. Her back welts, then tears. Patsey screams in agony.
Solomon strikes again and again. After a full thirty lashes
Solomon looks to Epps, who is not satisfied.

EPPS

Until I say no more! I ain't said
nothing!

Solomon strikes another ten to fifteen times. By now, as
promised, Patsey's back has been reduced to LITTLE MORE THAN
TORN MEAT AND BLOOD.

Finally, Solomon tosses down the whip he can and will do no
more.

EPPS

Strike her! Strike her!

Solomon will not. Epps takes up the whip and whips Patsey
with "ten fold" greater force than he had. The painfully loud
and angry curses of Epps load the air.

Patsey by now is terribly lacerated, Solomon describes
without exaggeration literally flayed. The lash wet with
blood which flowed down her sides and dropped upon the
ground. At length Patsey ceases struggling. Her head sinks
listlessly on the ground. Her screams and supplications
gradually decrease and die away into a low moan. It would
seem that she was dying.

Solomon, screaming at Epps:

SOLOMON

Thou devil! Sooner or later,
somewhere in the course of eternal
justice thou shalt answer for this
sin.

EPPS

No sin. No more 'n if it'd kicked a chair that wouldn't stand right, or a stove that was no good for holdin' fire. Things that give me consternation. A man does how he pleases with his property. At the moment, Platt, I am of great pleasure. You be goddamn careful I don't come to wantin' to lightenin' my mood no further.

By contrast to this horror, the field of cotton smiles in the warm sunlight. The birds chirp merrily amidst the foliage of the tress. Peace and happiness seems to reign everywhere.

Everywhere else.

Epps leaves Patsey to herself. He says not a word to the Mistress as he passes. The Mistress herself heads back into the house.

Solomon unties Patsey, lifts her and takes her to the cabin.

The slaves themselves work under the direction of MR. BASS, a large man, between forty and fifty years old, of light complexion and light hair. He is cool and self-possessed, fond of argument, but always speaking with extreme deliberation as well as a Canadian accent.

214 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - DAY

214

As the slaves continue to work, there is a conversation going on between Epps and Bass. Bass much skilled in the art of sophistry, while Epps's arguments are fueled mostly by emotion alone. Though at first Epps does little more than joke his way around the facts.

Solomon, working still, can't help but overhear.

BASS

I tell you what it is, Epps. It's all wrong. All wrong, sir. There's no justice. It is official business righteousness in slavery. I wouldn't own a slave if I was rich as Croesus, which I am not, as is perfectly well understood. More particularly among my creditors. There's another humbug: the credit system. Humbug, sir. No credit, no debt. Credit leads a man into temptation. Cash down is the only thing that will deliver him from evil. But this question of slavery; what right have you to your niggers when you come down to the point?

EPPS

What right? I bought 'em. I paid for 'em.

BAS

Of course you did. The law says you have the right to hold a nigger, but begging the law's pardon -- it lies.

EPPS

You are daft.

BASS

Yes, Epps, when the law says that it's a liar, and the truth is not in it. Is everything right because the law allows it? Suppose they'd pass a law taking away your liberty and making you a slave?

EPPS

That ain't a supposable case. Hope you don't compare me to a nigger, Bass.

BASS

In the sight of God, what is the difference, Epps, between a white man and a black one?

EPPS

Yah might as well ask what the difference is between a white man and a baboon. Now, I seen one of them critters in Orleans that knowed just as much as any nigger I got. Yah'd call them fellers citizens, I s'pose?

BASS

Look here, Epps. You can't laugh me down in that way.

(pointed)

Some men are witty, and some ain't so witty as they think they are. But let that pass. These niggers are human beings. If they don't know as much as their masters, whose fault is it? They are not allowed to know anything. You have books and papers, and can go where you please, and gather intelligence in a thousand ways. But your slaves have no privileges. You'd whip one of them if caught reading a book. They are held in bondage, generation after generation, deprived of mental improvement. Who can expect them to posses much knowledge if they are not brought down to a level with the brute creation, you slaveholders will never be blamed for it. If they are baboons, or stand no higher in scale of intelligence than such animals, you and men like you will have to answer for it. There's a sin, a fearful sin, resting on this nation that will not go unpunished forever. There will be a reckoning yet.

The "funny" has completely gone out of the conversation for Epps. Quite coldly:

EPPS

You like to hear yourself talk, Bass, better than any man I know of. Yah'd argue than black was white, or white black if anybody would contradict you. A fine supposition if yah lived among Yankees in New England. But yah don't. You most assuredly do not.

215 INT. MASTER EPPS'S PLANTATION - GREAT HOUSE - ADDITION - 215
EVENING

Solomon and Bass are working together alone on the extension. From the amount of work that's been done on it, it should be obvious that days have now passed.

Solomon makes a cautious approach to Bass. As casually as he can he inquires:

SOLOMON

Master Bass, I want to ask you what part of the country you come from?

BASS

What put that into your head?

SOLOMON

You would know if I should tell you.

BASS

I was born in Canada. Now guess where that is.

SOLOMON

Oh, I know where Canada is. I have been there myself.

BASS

Have you?

SOLOMON

Montreal and Kingston and Queenston and a great many places. And I have been in York state, too. Buffalo and Rochester and Albany, and can tell you the names of the villages on the Erie canal and the Champlain canal.

Bass gives Solomon a long and curious stare.

BASS

Well traveled for a slave. How came you here?

SOLOMON

Master Bass, if justice had been done I never would have been here.

BASS

How's this? Tell me all about it.

SOLOMON

I am afraid to tell you, though I don't believe you would tell Master Epps if I should.

BASS

Every word you speak is a profound secret.

Solomon holds a moment. Hasn't he heard the same promise before? Prior to Solomon stating his case, WE FADE TO:

BLACK

216 INT. MASTER EPPS'S PLANTATION - GREAT HOUSE - ADDITION - NIGHT 216

The dark has fallen. Hours have passed. Bass reflects on the story that Epps has told in the intervening.

BASS

How many years all told?

SOLOMON

Just nearly -- just passed eleven.

BASS

Your story is -- it is amazing, and in no good way.

SOLOMON

Do you believe, sir, in justice as you have said?

BASS

I do.

SOLOMON

That slavery is an evil that should befall none?

BASS

I believe so.

SOLOMON

If you truly do, I would ask. I would beg that you write my friends in the north, acquainting them with my situation and beseeching them to forward free papers, or take such steps as they might consider proper to secure my release.

Bass is somewhat overwhelmed by what Solomon has just told him. It takes him a moment to reconcile its magnitude.

BASS

You understand the danger of such an act in case of detection. Your story, true or not; what we attempt is punishable in the strictest way.

SOLOMON

I understand.

BASS

And you understand as well the necessity of strict silence and secrecy.

SOLOMON

Yes.

BASS

I need to take note; names and addresses of those you think can aide you. Not here, not now. Can you sneak away in the night?

217 INT. MASTER EPPS'S PLANTATION - KITCHEN - DAY 217

From the kitchen, we see Solomon stealing a candle and some matches.

218 EXT. MASTER EPPS'S PLANTATION - NIGHT 218

Solomon is alone in the dark at the riverbank. He lights the candle. Waits -- After a short while someone approaches. Solomon nervously expects discovery, but it is Bass.

219 EXT. MASTER EPPS'S PLANTATION - LATER 219

By the light of the candle Bass, armed with paper and a writing instrument, writes as Solomon gives him names.

SOLOMON

William Perry, Cephas Parker and Judge Marvin, all of Saratoga Springs, Saratoga county, New York. I had been employed by the later in the United States Hotel, and had transacted business with the former a considerable extent, and trust that at least one of them would be still living at that place.

BASS

It is so many years since you left Saratoga. All these men may be dead, or may have removed. You say you obtained papers at the Custom House in New York. Probably there is a record of them there. And I think it would be well to write and ascertain. I will take the letters to Marksville and post them from there. After that, I must travel. I will return to Marksville in ten week's time. I will enquire then about responses before returning here.

They sit on the banks quietly for a time as they absorb the enormity of their undertaking. Finally, from Solomon, a hint of hopeful emotion creeps forth though it is dispensed in a very matter-of-fact fashion.

SOLOMON

It would be unspeakable happiness to clasp my wife and family again.

BLACK

220 EXT. MASTER EPPS'S PLANTATION - GREAT HOUSE - ADDITION - DAY 220

The addition is well on its way to being finished. Slaves continue to work on it, Solomon in particular. As they work, Bass comes riding up on a horse. Solomon tries to remain calm but we can see the anxiety building in him.

Bass talks with Avery a bit, then makes his way casually to Solomon. His news is not good.

BASS

No letter yet, Platt.

SOLOMON

You are certain?

This hits Solomon hard. Recovering, emphatic:

SOLOMON
Write again.

BASS
No use.

SOLOMON
There is every use. My freedom.

BASS
No use. I have made up my mind to that. I fear the Marksville post master will mistrust something, I have inquired so often at his office. Too uncertain. Too dangerous. I have talked too openly of freedom for niggers. I have concern for my own life now. My beliefs have struck up against my fears. I will be honest that my fears preside.

Solomon just then begins to realize the finality of the situation. The truth of that is clear, though Bass cannot articulate it. Instead:

BASS
I have a job or two on hand which can be completed shortly. By that time I shall have a considerable sum of money, and then, Platt, I am leaving. I have lived in this region long enough. I am tired of slavery as well as you. I go with a heavy heart that I could do no more for you.

With much regret for his own failure of effort and spirit, Bass moves on.

221 INT. MARKSVILLE POST OFFICE - DAY

221

We are in the office of MR. WADDILL, the Post Master of Marksville. At the moment he is seated across from Mr HENRY NORTHUP. The careful eye will recognize him.

At the moment the conversation is regarding a book which Waddill holds - Uncle Tom's Cabin.

WADDILL

It's liberal fantasy, of course.
 Some call it literature. To my way
 of thinking it's sedition.
 Incredible that we have come this
 far. Or sunk this low; there is a
 true and genuine market for such
 twaddle. Dangerous days, sir.
 Dangerous. Far too much
 politickin'. The Soft Shells, the
 Hard Shells, the Hunkers and Barn
 Burners and Woolly Heads and Silver
 Grays. And the worst of the lot;
 the Free Soilers and the
 Abolitionists. They take root like
 a malignant plant. The north is
 lost to us. No offense.

Northup gives a noncommittal nod.

WADDILL (CONT'D)

It is the territories we must hang
 on to, now. And by any measure.

NORTHUP

The Free Soilers, the
 Abolitionists; you are liberated of
 such kind yourself?

WADDILL

Delightfully. Never -- but one here
 in Marksville. An eccentric
 creature who preaches abolitionism
 as vehemently as any fanatic in the
 North I would imagine. He is
 otherwise a generous, inoffensive
 man. But always maintaining the
 wrong side of an argument. It
 affords us a deal of amusement. He
 is an excellent mechanic, and
 almost indispensable in the
 community. He is a carpenter. Name
 a Bass.

NORTHUP

He has become familiar with me.

Waddill gives a look, but before he can respond, Northup
 asks:

NORTHUP

Where may I find this Mr. Bass?

222 EXT. STREET - EVENING

222

Bass is exiting his residence. Northup, who has been waiting, calls to him.

NORTHUP

Mr. Bass?

Bass looks. He does not recognize Northup and is cautious to say the least.

BASS

Are we acquainted?

NORTHUP

We are not. To the point: Allow me to ask you if you were on Bayou Boeuf last August.

BASS

Yes, sir. I was there in August.

NORTHUP

Did you write a letter for a colored man at that place to some gentlemen in Saratoga Springs?

BASS

Excuse me, sir, if I say that is none of your business.

NORTHUP

Perhaps I'm rather hasty, Mr. Bass. I beg your pardon. But I have come from the state of New York to accomplish the purpose of the writer of a letter post marked at Marksville. I am in search of Solomon Northup. If you know him, I beg you to inform me frankly where he is, and I assure you the source of any information you may give me shall not be divulged if you desire it not to be.

Bass considers his next words.

BASS

I have done nothing to be ashamed of. I am the man who wrote the letter. If you have come to rescue Solomon Northup, I am glad to see you.

223 EXT. MASTER EPPS'S PLANTATION - FIELD - DAY

223

The Slaves are working in the field. Solomon too focused on picking cotton to note the arrival of two men by carriage: Northup and the SHERIFF.

While the Sheriff makes his way to the field, Northup remains with the carriage. The Sheriff calls:

SHERIFF

Platt? Where is the boy called
Platt?

SOLOMON

Sir --

The Sheriff crosses to him.

SHERIFF

Your name is Platt, is it?

SOLOMON

Yes, master.

Pointing off to the distance.

SHERIFF

Do you know that man?

Solomon looks toward the carriage. He has to shield his eyes from the sun. Recognition is slow coming to him. But when it does, it hits him as a rush.

SOLOMON

Henry Northup?

Solomon starts for Northup, but he is pulled back by the Sheriff who is keen to determine Solomon's true identity. As he does, Epps makes his way over.

SHERIFF

Stop a moment. Have you any other
name than Platt?

SOLOMON

Solomon Northup is my name.

EPPS

Sheriff --

SHERIFF

Have you a family?

EPPS

What's all this?

SHERIFF
It is official business.

EPPS
My nigger, my business.

SHERIFF
Your business waits.
(to Solomon)
Tell me of your family.

SOLOMON
I have a wife and three children.

SHERIFF
What were their names?

SOLOMON
Elizabeth, Margaret and Alonzo.

SHERIFF
And your wife's name before her
marriage?

SOLOMON
Anne Hampton. I am who I say.

Solomon pushes past the sheriff. As Solomon moves toward Northup, his pace quickens with each step until his personal velocity has him nearly at a dead run. The two old friends make contact with each other, wrap each other in a long and emotional embrace. It is finally broken by Epps, who has moved over with the Sheriff.

EPPS
Nah -- You will unhand 'em. Platt
is my nigger!

NORTHUP
He is Solomon Northup.

EPPS
You say --

NORTHUP
He belongs to no man.

EPPS
You say! You come here, unfamiliar
to me, and make claims.

SHERIFF

Not claims. I have no doubts.

EPPS

To hell with that! My nigger, and
I'll fight you for 'em!

NORTHUP

As is your right. As it will be my
pleasure to bankrupt you in the
courts. Your decision.

Epps stews for a moment, then seethes toward Solomon:

EPPS

You damned me since you darkened my
eaves. Glad to be done with yah.
(to Northup)
Take 'em!

SHERIFF

If you know what's wise -- we'll
leave.

The trio starts for the carriage. Solomon is pulled back by
the call of Patsey's voice:

PATSEY

Platt --

NORTHUP

We need to make haste.

Disregarding Northup, Solomon crosses over to Patsey. For a
moment they just stand across from each other. Under the
circumstances, neither really knows how to engage. Finally,
suddenly, Patsey throws her arms around Solomon and they
embrace. With all the pain in his heart:

A moment longer they hold each other. They separate, Solomon
heading back to the carriage. He and Northup alight, the
Sheriff taking the reins. The Sheriff chides the horses and
they start up. As they move on, Patsey sinks down to the
ground, where she remains in a weary and half-reclining
state, the other slaves around her.

WE STAY WITH HIM as he travels further and further from the
slaves who are diminished by distance. Solomon waves a hand
to them, but the carriage rounds a bend and a thicket of
trees hides them from his eyes forever more.

225 INT. NORTHUP HOUSE - DAY

225

It is a scene reminiscent of the top of the show. The Northup family gathered. Anne, again, in her finest attire. We see, also, the Northup children: Elizabeth, who is now twenty two, Margaret who is now twenty SHE CARRIES WITH HER A BUNDLE and Alonzo who is seventeen.

Also present is MARGARET'S HUSBAND. The family waits patiently, dutifully -- but anxiously.

THE DOOR TO THE ROOM OPENS. It is Mr. Northup. He looks from face to face, makes sure all are prepared for what's to come. Northup steps from the room. A moment later SOLOMON ENTERS. He is clean, well dressed, but he bears the scares of his time away.

Anne rises to greet him, but holds back. All around, the body language of the family is stiff and awkward. They are, after all after twelve years little more than familiar strangers.

In an effort to minimize the shock of the moment, Solomon tries to remain emotionally detached. To Anne:

SOLOMON

I apologize for my appearance. I have had a difficult time of things these past many years.

Solomon looks among his family. Trying to recall them as much as they look to see familiarity within him.

SOLOMON

Elizabeth. Margaret. Alonzo. You do not recognize me, do you? How could you? When I was removed you were but seven; a little prattling girl playing with her toys. Now -- you've grown to womanhood. And who is this?

MARGARET

He is my husband.

SOLOMON

Husband?

MARGARET'S HUSBAND

It is very good to meet you, sir.

Solomon almost breaks, but he keeps himself together.

SOLOMON

We have much acquainting to do.

Margaret rises, she presents her bundle to her father.

MARGARET

And this is your grandson. Solomon
Northup Staunton.

SOLOMON

Solomon --

MARGARET

We would have no other name for
him. No other.

As much as Solomon was trying to keep his emotions in check, the sight of his grandson -- The fact his grandson carries his name, is overwhelming. Solomon breaks down. Emotionally, physically -- But ANNE IS THERE TO CATCH HIM. To lift his body and his spirit.

But even at that their "embrace" remains a bit chaste, slightly formal. But as she holds him, Anne's fingers BRUSH THE BURNS ON SOLOMON'S LEFT FOREARM. She pushes up Solomon's sleeve, she looks at the marks, the flower -- Anne knows exactly what it means and why it is on his arm.

In that instant Solomon can no longer maintain his cool facade. The moment so very overwhelming, Solomon seeks solace in it. He says to Anne with all his heart:

SOLOMON

Forgive me.

ANNE

There is nothing to forgive.

The pair, joined now by the whole family, hold on to each other for life -- and one would think for all the rest of their lives.

FADE TO:

226 BLACK

226

END